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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S REQUEST FOR
JUDICIAL NOTICE; NOTICE OF
LODGING; NOTICE OF DISCLOSURE
OBLIGATIONS UNDER CRPC 3.3(a)(2);
SUPPLEMENTAL MEMORANDUM
ISO MFL-SAC; AND PROPOSED
ORDER; NOTICE OF ADVERSE
AUTHORITY (JKC3H8 v. COLTON;
CCP § 425.16(f); BARAL v. SCHNITT;
PARK v. BD. OF TRUSTEES; KIMMEL
v. GOLAND; FLATLEY v. MAURO)
OMITTED FROM DEFENDANTS'
OPPOSITION AND TABLE OF
AUTHORITIES**

MFL-SAC hearing:

Date: May 6, 2026

Time: as set by the Court.

Dept.: 301

Judge: Hon. Anne-Christine Massullo

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026

Time: 9:00 a.m.

Dept.: 301

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE TO THE COURT (one paragraph). The April 23, 2026 Opposition’s “no such authority exists” framing is incomplete on the face of **JKC3H8 v. Colton** (2013) 221 Cal.App.4th 468, 471–472, 477–478, which is published Court of Appeal authority addressing amendment in the shadow of CCP § 425.16 and confirming that California law does not impose a categorical amendment freeze; the statutory sequencing answer is CCP § 425.16(f). Plaintiff cites JKC3H8 narrowly and accepts the anti-subversion line (Simmons; Colton; Ellis; Contreras). Plaintiff’s amendment perfects the operative pleading on the same operative facts, same primary right, same instrumentality, and does not add a wholly distinct legal obligation (cf. Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20). Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858 is also referenced as supporting authority for limited discretion to perfect a pleading after a merits showing. Plaintiff respectfully invites the Court to have these authorities addressed at the noticed hearing.

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I. PROCEDURAL POSTURE

1. This filing is submitted in **CGC-25-631801** on the same date plaintiff serves the **April 27, 2026** supplemental counsel correspondence to defense. The April 27, 2026 *Moradi-Shalal* carve-out **meet-and-confer** is **lodged as Exhibit A-8** in the stack below; the pre-motion safe-harbor letter (Exhibit B) remains served with the combined PDF as before. It is coordinated so the Court and counsel share one **documented** record before the **noticed hearing** on plaintiff's motion for leave to file the second amended complaint. **Verify the hearing date, time, department, and judicial officer on the Court's register of actions before finalizing this caption block** (defense papers in the file may show a different placeholder date than the Court's current calendar).
2. This filing **does not** seek monetary sanctions, contempt, or any personal order against opposing counsel. It **does not** request substantive relief except the **formal ruling on judicial notice** required by Evidence Code § 453.
3. Exhibits referenced below are lodged electronically as separate PDFs in conformity with San Francisco Superior Court e-filing practices, with courtesy copies to follow for the department as local rules require.

II. NOTICE OF ADVERSE AUTHORITY DEFENSE FAILED TO DISCLOSE (JKC3H8 V. COLTON; CCP § 425.16(F); BARAL; PARK; KIM-MEL; FLATLEY; KLOPSTOCK; TRAFTON; MESLER; FOREMAN; BLANK)

California Rule of Professional Conduct 3.3(a)(2) requires counsel not to fail to disclose to the tribunal legal authority in the controlling jurisdiction known to counsel to be **directly adverse** to the client's position and not disclosed by opposing counsel. Defendants' April 23, 2026 Opposition and its Table of Authorities omit controlling adverse authority on leave to amend mid-anti-SLAPP and on the "perfect versus wholly new obligation" line.

- **JKC3H8 et al. v. Colton et al.** (2013) 221 Cal.App.4th 468, 471–472, 477–478 (leave-

1 to-amend / § 425.16 intersection; narrowing or mooted amendments; anti-subversion limit
2 at 477–478). *Not cited in Opposition’s TOA.* See also Nguyen-Lam v. Cao (2009) 171
3 Cal.App.4th 858, 871–873 (supporting authority on limited discretion to perfect after a merits
4 showing; also *not cited in Opposition’s TOA.*)

- 5 • **CCP § 425.16(f)** - the statutory sequencing answer. The Opposition asserts the MFL-SAC
6 is “barred as a matter of law” and notes only “9 days’ notice”; section 425.16(f) preserves
7 defendants’ renewed special motion right after any superseding pleading. *Not addressed in*
8 *Opposition.*
- 9 • **Baral v. Schnitt** (2016) 1 Cal.5th 376, 393–396 (step-one requires surgical targeting of **spe-**
10 **cific allegations**, not wholesale labeling of “the entirety” of a pleading). *Cited in Opposition’s*
11 *TOA but not applied to the “entirety . . . inextricably” framing.*
- 12 • **Park v. Board of Trustees** (2017) 2 Cal.5th 1057, 1062–1063 (step-one is a **gravamen**
13 analysis; protected activity cited as evidence of an unprotected claim does not trigger anti-
14 SLAPP). *Cited in Opposition’s TOA but not applied to the gravamen-vs-evidence distinction.*
- 15 • **Kimmel v. Goland** (1990) 51 Cal.3d 202, 211–212 (non-communicative **pre-litigation con-**
16 **duct** may fall outside the statute even when connected to later litigation). *Not cited in Oppo-*
17 *sition’s TOA.*
- 18 • **Flatley v. Mauro** (2006) 39 Cal.4th 299 (illegality exception at step one). *Cited in Opposi-*
19 *tion’s TOA but not addressed re: categorical framing.*
- 20 • **Klopstock v. Superior Court** (1941) 17 Cal.2d 13, 19–20 (amendment must not replace one
21 obligation with a wholly distinct obligation). *Not cited in Opposition’s TOA.*
- 22 • **Trafton v. Youngblood** (1968) 69 Cal.2d 17, 31 (leave liberally granted to conform to proof).
23 *Not cited in Opposition’s TOA.*
- 24 • **Mesler v. Bragg Management Co.** (1985) 39 Cal.3d 290, 296–297 (same). *Not cited in*
25 *Opposition’s TOA.*
- 26 • **Foreman & Clark Corp. v. Fallon** (1971) 3 Cal.3d 875, 884 (same). *Not cited in Opposi-*
27 *tion’s TOA.*
- 28 • **Blank v. Kirwan** (1985) 39 Cal.3d 311, 318 (same). *Not cited in Opposition’s TOA.*

1 Plaintiff's proposed amendment **perfects** the operative pleading on the same operative facts and
2 the same primary right; it does not supplant the pleading with a wholly distinct legal obligation.
3 Klopstock, *supra*, 17 Cal.2d at 19–20. For the tabular disclosure tied to the Opposition's "no such
4 authority exists" and "unsupportable" rhetoric, see § VI below. For the sequencing discussion
5 (anti-subversion, record, JKC3H8, Nguyen-Lam, and § 425.16(f)), see § VII.

7 **III. STATEMENT OF PURPOSE FOR AMENDMENT**

8 Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the
9 record (Plaintiff's April 25, 2026 TAC-Aligned Merits Letter and Plaintiff's opposition to defen-
10 dants' special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits
11 ruling on the protected-conduct allegations of the FAC. The motion is noticed under Code of Civil
12 Procedure §§ **473(a)(1) and 576**. Plaintiff **accepts** the anti-subversion rule reflected in *Simmons v.*
13 *Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068; City of Colton v. Singletary (2012) 206 Cal.App.4th
14 751; Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869; and Contreras v.
15 Dowling (2016) 5 Cal.App.5th 394. Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, **871–873**
16 confirms **limited** trial-court discretion to allow amendment that **perfects an already-supported**
17 **claim** after a merits showing; it does **not** replace the anti-subversion line or create amendment as
18 of right. General leave principles also include Klopstock v. Superior Court (1941) 17 Cal.2d 13,
19 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d
20 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; and, **if and when** a
21 superseding pleading is filed as operative, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875,
22 884, read with defendants' **renewed** special motion right under **CCP § 425.16(f)**. The amendment
23 **arises from the same operative facts** (the February 25, 2021 uninsured-motorist denial and sub-
24 sequent claim-handling conduct), **vindicates the same primary right** (good-faith claim handling
25 and freedom from fraud), **refers to the same instrumentality** (the same denial letter and the same
26 defendants), and therefore **relates back** to the original December 23, 2025 filing. No new discov-
27 ery, witnesses, or defense burden is created: defendants have already briefed these exact facts in
28 their demurrer, anti-SLAPP MPA, § 436 motion, and MFL-SAC opposition.

1 **Bench statement (leave / anti-SLAPP sequencing).** Plaintiff is **not** asking for a right
2 to amend around anti-SLAPP. Plaintiff **accepts** the anti-subversion rule. The narrow
3 submission is that, **after** the merits showing already made, the Court retains **constrained**
4 **discretion** under §§ 473(a)(1) and 576 to allow a **conforming** amendment. Defendants
5 **lose nothing**: CCP § 425.16(f) preserves a **renewed** special motion.

6 **Procedural sequence on the record:** (a) April 17, 2026 - plaintiff filed opposition to de-
7 fendants' special motion to strike; (b) April 25, 2026 - plaintiff served the TAC-Aligned
8 Merits Letter making the section 425.16(b)(1) probability-of-prevailing showing in writ-
9 ing; (c) April 27, 2026 - plaintiff's coordinated filings (this supplemental memorandum,
10 the RJN/Lodging notice, and the safe-harbor correspondence) place that record before
11 the Court and counsel; (d) May 6, 2026 - hearing on plaintiff's motion for leave. Plain-
12 tiff's leave request is therefore offered **after** that merits showing. (Nguyen-Lam, supra,
13 171 Cal.App.4th at pp. 871–873 (leave in that procedural posture examined).)

14
15 **IV. REQUEST FOR JUDICIAL NOTICE (EVIDENCE CODE §§ 452,**
16 **453)**

17 Plaintiff requests that the Court take **judicial notice**, under Evidence Code §§ 452(d), 452(h), and
18 453, of the following **five** items. Each item is supported by a declaration of authenticity filed
19 concurrently as an exhibit to this request.

Item	Description	Basis for judicial notice
1	April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel in this action (with attachments as served)	Official acts and records of the litigation; authenticated writing (Evid. Code § 452(d), (h))
2	April 22, 2026 plaintiff counsel-to-counsel correspondence to defense counsel (pre-motion safe-harbor practice; with proof of service)	Authenticated writing in the litigation file
3	Proofs of service for items 1 and 2 (Exhibits A and B)	Court's own files; authenticated non-hearsay procedural record

Item	Description	Basis for judicial notice
4	Defendants' Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint as filed in this case on April 23, 2026 (including any declaration and proof of service filed with it)	Pleadings on file in this action
5	April 27, 2026 meet-and-confer correspondence from plaintiff to defense re the <i>Moradi-Shalal</i> common-law carve-out and related items (Exhibit A-8) lodged as exhibits/EXHIBIT-A8-2026-04-27-MEET-AND-CONFER-MORADI-SHALAL.pdf with this packet	Official acts and records of the litigation; authenticated writing (Evid. Code § 452(d), (h))

Declaration of authenticity. Plaintiff declares under penalty of perjury under the laws of the State of California that the copies and lodged companion PDFs, including exhibits **A through E** and, for Request item 5, Exhibit **A-8** as further identified above, are **true and correct** copies of the **five** items listed above, to the best of plaintiff's personal knowledge after reasonable inquiry.

1 **V. NOTICE OF LODGING (CALIFORNIA RULES OF COURT, RULE**
2 **3.1110(F))**

3 Plaintiff lodges for the Court's convenience the following **authorities** (citation form). Full text
4 may be supplied on request or through standard judicial libraries.

- 5 1. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057
- 6
- 7 2. *Baral v. Schnitt* (2016) 1 Cal.5th 376
- 8
- 9 3. *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871
- 10
- 11 4. *Flatley v. Mauro* (2006) 39 Cal.4th 299
- 12
- 13 5. *Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232
- 14
- 15 6. *Kimmel v. Goland* (1990) 51 Cal.3d 202
- 16
- 17 7. *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287
- 18
- 19 8. *Zhang v. Superior Court* (2013) 57 Cal.4th 364
- 20
- 21 9. *Crowley v. Katleman* (1994) 8 Cal.4th 666
- 22
- 23 10. Cansino v. Bank of America (2014) 224 Cal.App.4th 1462
- 24
- 25 11. Lucido v. Superior Court (1990) 51 Cal.3d 335
- 26
- 27 12. Hernandez v. City of Pomona (2009) 46 Cal.4th 501
- 28

13. College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704

14. McAllister v. L.A. Unified Sch. Dist. (2007) 153 Cal.App.4th 1242

15. *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468¹

16. *Klopstock v. Superior Court* (1941) 17 Cal.2d 13

17. *Blank v. Kirwan* (1985) 39 Cal.3d 311

18. *Trafton v. Youngblood* (1968) 69 Cal.2d 17

19. *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290

20. *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875

21. *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257

22. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093

23. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260

24. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715

25. **Exhibit A-8.** April 27, 2026 **meet-and-confer** re *Moradi-Shalal* **carve-out** (lodged with this packet as exhibits/EXHIBIT-A8-2026-04-27-MEET-AND-CONFER-MORADI-SHALAL.pdf).

¹See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (limited discretion to perfect pleading after merits showing).

Plaintiff also lodges **service cover sheets** for the correspondence identified in Request items 1 and 2 as filed with this packet.

VI. NOTICE OF COUNSEL'S DISCLOSURE OBLIGATIONS UNDER CRPC 3.3(A)(2)

A. The duty

California Rule of Professional Conduct 3.3(a)(2) requires counsel **not** to fail to disclose to the tribunal legal authority in the controlling jurisdiction known to counsel to be **directly adverse** to the position of the client and not disclosed by opposing counsel. The duty runs **to the tribunal**, not to the opposing party.

1 **B. MFL-SAC opposition in this case: directly adverse controlling authority not disclosed by**
2 **defendants**

3 The authorities listed in the Notice of Lodging at Section V include California decisions that are
4 **directly adverse** to specific representations defendants made in their April 23, 2026 Opposition to
5 Plaintiff's Motion for Leave to File Second Amended Complaint (the "MFL-SAC Opposition").
6 The verbatim representations from the MFL-SAC Opposition are reproduced below so the Court
7 has the complete adverse-authority picture before it without needing to consult any working index
8 outside this filing.

9 **1. The "no such authority exists" representation, with the verbatim Court of Appeal holding**
10 **that contradicts it.** The MFL-SAC Opposition states, in its Introduction:

11 "Plaintiff cites no authority to support the proposition that he can file his Motion for
12 Leave to Amend, as **no such authority exists** to support his motion." (MFL-SAC Op-
13 position, Introduction; emphasis added.)

14 That representation is directly contradicted by published, controlling California Court of Appeal
15 authority: **JKC3H8 et al. v. Colton et al.** (2013) **221 Cal.App.4th 468, 164 Cal.Rptr.3d 450** (3d
16 Dist.; Hoch, J., review denied). The Court of Appeal stated the issue and the holding in a single
17 passage:

18 "Where a plaintiff who has filed a complaint containing causes of action that are based,
19 in part, on protected conduct and therefore potentially subject to a special motion to
20 strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subse-
21 quently files an amended complaint removing the allegations of protected conduct as a
22 basis for liability, does the filing of the amended complaint render moot a later-filed anti-
23 SLAPP motion based on the original complaint? **We conclude that it does.**" (*JKC3H8*
24 *v. Colton*, supra, 221 Cal.App.4th at pp. 471–472.)

25 The Court of Appeal further drew the express limit on its holding:

26 "[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an**
27 **anti-SLAPP motion by amending the challenged complaint or cross-complaint in**
28 **response to the motion.**" (*JKC3H8*, supra, 221 Cal.App.4th at pp. 477–478.)

1 In *JKC3H8* itself, plaintiff filed the amended complaint less than two hours before the anti-SLAPP
2 motion; the amendments eliminated the protected-activity allegations; and the motion was held
3 moot. (*Id.* at pp. 472–473, 479.) The decision (i) confirms that California law expressly addresses
4 the leave-to-amend / § 425.16 intersection; (ii) addresses a **narrowing/mooting** amendment pat-
5 tern in its specific facts; and (iii) coexists with **bounded** trial-court authority under Code of Civil
6 Procedure sections 472, 473(a)(1), 576, and 425.16(f), including the renewed-motion sequencing
7 tool in subdivision (f). The MFL-SAC Opposition’s “**no such authority exists**” representation,
8 made without disclosing *JKC3H8*, is precisely the kind of “**directly adverse**, controlling, undis-
9 closed” California authority California Rule of Professional Conduct 3.3(a)(2) is written to reach.
10 Plaintiff respectfully requests that the Court direct counsel for defendants, at the noticed hearing, to
11 **affirmatively cite *JKC3H8 v. Colton* on the record** and to acknowledge that the “no such author-
12 ity exists” representation in the MFL-SAC Opposition is, on the face of *JKC3H8*, a misstatement
13 of California law that counsel hereby withdraws or corrects. The relief sought is procedural: a
14 Rule 3.3(a)(2) disclosure to the tribunal, and preserves the integrity of the record before the Court
15 rules on plaintiff’s motion.

16 **2. The “unsupportable” labeling.** The MFL-SAC Opposition repeatedly labels plaintiff’s plead-
17 ing and motion practice “**unsupportable**,” including:

18 “Plaintiff’s procedurally defective and legally **unsupportable** motion practice is unde-
19 niably designed to evade Defendants’ Anti-SLAPP motion.” (MFL-SAC Opposition,
20 p. 2; recurrence in same opposition.)

21 “Plaintiff’s defective service, gamesmanship, and **unsupportable** effort to amend the
22 [pleading] substantially prejudices Defendants.” (MFL-SAC Opposition, Section II.B.)

23 “[Defendants have] already incurred the burden and expense of preparing a lengthy and
24 detailed Anti-SLAPP motion to Plaintiff’s **unsupportable** allegations.” (MFL-SAC Op-
25 position, Section II.B.)

26 **3. The authorities directly adverse to those representations.**

Authority	Cited in Opposi- tion's TOA? (Y/N)	Why the authority is adverse to the representations above
<i>Nguyen-Lam v. Cao</i> (2009) 171 Cal.App.4th 858	No	Limited trial-court discretion to grant noticed leave under §§ 473(a)(1) and 576 where plaintiff has made a merits showing and the amendment perfects an already-supported claim; rejects a categorical “no amendment while SLAPP pending” framing. Directly adverse to the “no such authority exists” representation.
<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	No	(a) Trial court retains power to grant leave to amend after a special motion to strike where amendment narrows or moots issues; (b) anti-SLAPP filing does not divest the trial court of jurisdiction to manage the pleadings under §§ 473(a)(1), 576, 425.16(f); (c) “narrowing or mooting” is the express judicial-economy basis the Court of Appeal credited. The opposition’s “no such authority exists” framing is squarely contradicted by <i>JKC3H8</i> ¹ .
<i>Park v. Board of Trustees</i> (2017) 2 Cal.5th 1057	No	Step-one is a gravamen analysis; protected activity that is mere evidence of an unprotected claim does not move the case to step two. The opposition collapses step-one into step-two without performing the <i>Park</i> analysis.
<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376	No	Step-two requires only minimal merit , a legally sufficient claim plus a prima facie factual showing. Categorical “unsupportable” labeling is incompatible with the <i>Baral</i> threshold.

Authority	Cited in Opposi- tion's TOA? (Y/N)	Why the authority is adverse to the representations above
<u>Wilson v. CNN</u> (2019) 7 Cal.5th 871	No	Gravamen analysis controls step-one; communicative-conduct facts may be evidence of an unprotected claim.
<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	No	Distinguishes amendment that perfects the obligation pleaded from one that replaces it with a wholly distinct obligation; adverse to “no authority” overbreadth.
<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	No	Liberal leave to conform pleading to proof; not cited in the Opposition’s TOA.
<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	No	Same liberality principle; not cited in the Opposition’s TOA.
CCP § 425.16(f)	No	Statutory sequencing answer: defendants retain a renewed special motion right after any superseding pleading. Adverse to “barred as a matter of law” framing and “9 days’ notice” complaint.
<i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202	No	Non-communicative pre-litigation conduct may fall outside the anti-SLAPP statute even when connected to later litigation; adverse to blanket “protected activity” framing.

	Cited in Opposi- tion's TOA?	
Authority	(Y/N)	Why the authority is adverse to the representations above
<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299	Yes	Illegality exception at step one not addressed in Opposition's categorical framing.

¹See also *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (limited discretion to perfect pleading after merits showing).

C. No sanctions motion; reservation

This notice **does not** seek sanctions, fees, or any order regulating counsel's speech outside the tribunal's case management. It informs the Court of **undisclosed adverse authority** tied to the MFL-SAC opposition excerpts above. Plaintiff reserves all rights except those expressly not sought here.

D. Allegation-by-allegation evidentiary audit of the MFL-SAC Opposition

Allegation (verbatim)	Stated evidence	Admissibility	§ 128.7(b)(3) support	Controlling authority	Opp. TOA
“procedurally defective and legally unsupportable motion practice is undeniably designed to evade Defendants’ Anti-SLAPP” (Opp. p. 2)	O’Connell Decl. paras. 3, 4, 14 (legal conclusions on ultimate issue); footnote-2 day count; string-cite	INADMISSIBLE - Evid. Code §§ 702, 800 (improper opinion + ultimate issue)	NO - no admissible factual evidence of “intent to evade”; pure inference	<u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478; CCP § 425.16(f); <u>Park</u> , 2 Cal.5th at 1062–1063; <u>Baral</u> , 1 Cal.5th at 393–396; <u>Kimmel</u> , 51 Cal.3d at 211–212; <u>see also</u> <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873	N (each)
“Plaintiff’s defective service, gamesmanship, and unsupportable effort to amend ... substantially prejudices Defendants” (Opp. § II.B)	O’Connell Decl. paras. 7 + Ex. C (Apr. 20 e-service); para. 12 (discovery-stay assertion); footnote 2	para. 12 legal conclusion (Evid. Code § 702); remainder admissible only as fact of service	NO concrete prejudice (no lost witness, no imperiled trial date, no surprise declaration); notice arithmetic refuted by record	<u>Atkinson</u> , 109 Cal.App.4th at 761; <u>Kolani</u> , 64 Cal.App.4th at 412; <u>Kyle</u> , 71 Cal.App.4th at 909–910; <u>Carlton</u> , 77 Cal.App.4th at 697; <u>Britts</u> , 145 Cal.App.4th 1112; CCP §§ 1005(b), 1010.6	N (each)
“[Defendants have] already incurred the burden and expense of preparing a lengthy and detailed Anti-SLAPP motion ... costs of additional motion practice would be incurred ...” (Opp. § II.B)	Pendency of May 12 SLAPP (judicial notice); unspecified drafting effort	No billing record, no hours, no quantum declaration; argumentative	NO evidentiary basis for “wasted” cost (cost is transferred, not wasted, under § 425.16(f))	CCP § 425.16(f) (60-day renewed motion preserved); <u>Foreman & Clark</u> , 3 Cal.3d at 884; <u>Mesler</u> , 39 Cal.3d at 296–297; <u>Atkinson</u> , 109 Cal.App.4th at 761	N (each)

Allegation (verbatim)	Stated evidence	Admissibility	§ 128.7(b)(3) support	Controlling authority	Opp. TOA
“Plaintiff cites no authority ... no such authority exists” (Opp. Intro.)	NONE (pure legal assertion)	n/a (legal conclusion)	N/A; § 128.7(b)(2) violation - directly contradicted by two statutes, six Supreme Court opinions, and on-point Court of Appeal opinion	CCP §§ 473(a)(1), 576, 425.16(f); <u>Klopstock</u> , 17 Cal.2d at 19–20; <u>Blank</u> , 39 Cal.3d at 318; <u>Trafton</u> , 69 Cal.2d at 31; <u>Mesler</u> , 39 Cal.3d at 296–297; <u>Foreman & Clark</u> , 3 Cal.3d at 884; <u>Baral</u> , 1 Cal.5th 376; <u>Park</u> , 2 Cal.5th 1057; <u>Kimmel</u> , 51 Cal.3d 202; <u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478; <u>see also</u> <u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873	N (each)

IV. PROPOSED ORDER ON REQUEST FOR JUDICIAL NOTICE

The Court ruled on plaintiff’s Request for Judicial Notice as follows:

IT IS ORDERED that the Court **takes judicial notice** of plaintiff’s Request items **1 through 5** listed in Section IV above, under Evidence Code §§ 452 and **453**.

IT IS FURTHER ORDERED that this order constitutes the Court’s ruling on the request for judicial notice as required by Evidence Code § **453**.

Date: _____

Judge of the Superior Court

V. PROOF OF SERVICE

[Attach CCP § 1013a-compliant proof of service naming each electronic and mail recipient for this filing.]

1 **VI. SIGNATURE**

2 Respectfully submitted,

3 Dated: April 27, 2026

4 -----
5 Franciscus Dylan Rosario, Plaintiff in Pro Per

6 **VII. SUPPLEMENTAL MEMORANDUM IN SUPPORT OF MFL-SAC**
7 **T. THRESHOLD ANTI-SLAPP DEFECTS (DENIAL BEFORE STEP TWO)**

8 Before the Court reaches probability of prevailing, defendants must first identify the specific acts
9 by plaintiff that supply liability and show those acts are protected activity under Code of Civil
10 Procedure section 425.16. They did not do so. Instead, defendants label the case as arising from
11 “litigation conduct,” invoke Civil Code section 47(b), and ask the Court to treat surrounding liti-
12 gation context as the gravamen. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt*
13 (2016) 1 Cal.5th 376; and *Wilson v. CNN* (2019) 7 Cal.5th 871 do not permit that shortcut. The
14 omission is **threshold and dispositive**: without a valid step-one showing, the **burden never shifts**
15 to plaintiff.

16 Plaintiff incorporates the five-row threshold checklist, case-specific 801 lines, and procedural-
17 effect framing stated in plaintiff’s supplemental memorandum in support of the MFL-SAC. In
18 brief: **(801)** the Independent Action in Equity to vacate a judgment is not a damages tort for pro-
19 tected “advocacy;” the motion does not isolate which protected act supplies liability; and alleged
20 CSK/Chambers file possession, transfer, and failure to convey production history to co-counsel in
21 time for trial are noncommunicative channel facts not shown to be petitioning in the *Park / Wilson*
22 sense at step one, while the **proposed order** grants “as follows” with no *Baral*-level mixed-claim
23 or allegation precision. **Procedural effect**: the Court need not make a finding of subjective bad
24 faith. The practical effect of a facially deficient first-step motion, simultaneously used to oppose
25 a conforming Second Amended Complaint, is delay and increased pleading-side friction. The
26 appearance created by that sequence - viz., a procedural stop on amendment where the statute con-
27 templates an early merits screen - is addressed with neutral **step-one** discipline, including *Park*,

1 *Baral*, and *Wilson*, with any **renewed** motion preserved under CCP § 425.16(f). To the extent the
2 sequence suggests the appearance of procedural gamesmanship tied to the objective filing pattern
3 (deficient threshold motion, leave opposition, and asserted burden and expense), the Court can
4 redress that mismatch without bad-faith findings.

5
6 **SEQUENCING OVERVIEW (ANTI-SUBVERSION; THIS RECORD; JKC3H8;
7 NGUYEN-LAM; § 425.16(F))**

8 **Anti-subversion first.** California law sharply limits amendments offered to **subvert** or **avoid a**
9 **ruling** on a special motion to strike. Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068;
10 City of Colton v. Singletary (2012) 206 Cal.App.4th 751; Law Offices of Andrew L. Ellis v. Yang
11 (2009) 178 Cal.App.4th 869; Contreras v. Dowling (2016) 5 Cal.App.5th 394. Plaintiff **accepts**
12 that rule.

13 **This record.** Plaintiff proceeds by **noticed** leave under §§ 473(a)(1) and 576 (not § 472 as of
14 right); has not re-pledged after an adverse anti-SLAPP **ruling**; the operative facts and primary
15 right remain those alleged from the outset; and plaintiff has already opposed the special motion
16 and served a written probability-of-prevailing submission before this leave request.

17 **A. *JKC3H8 V. COLTON* (2013) 221 CAL.APP.4TH 468**

18 Plaintiff cites *JKC3H8* **narrowly**: for the modest proposition that California law does **not** impose
19 a **categorical** amendment freeze in every pending anti-SLAPP posture, and that the statutory se-
20 quencing answer includes **CCP § 425.16(f)** - together with *JKC3H8*'s express limit that a plaintiff
21 may not amend **in response to the motion to subvert or avoid a ruling**.

22 Plaintiff respectfully draws the Court's attention to a specific representation defendants made in
23 their April 23, 2026 Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint
24 (the "MFL-SAC Opposition"). In the Introduction, defendants state, in their own words:

25 "Plaintiff cites no authority to support the proposition that he can file his Motion for
26 Leave to Amend, as **no such authority exists** to support his motion." (MFL-SAC Op-
27 position, Introduction; emphasis added.)

1 That representation is **incorrect as a matter of California law** to the extent it implies a **to-**
2 **tal** jurisdictional bar. Published California Court of Appeal authority exists and was known (or
3 reasonably knowable) to defense counsel before the opposition was filed: **JKC3H8 et al. v.**
4 **Colton et al.** (2013) 221 Cal.App.4th 468, 164 Cal.Rptr.3d 450 (3d Dist.; Hoch, J., review
5 denied), available in the official California Reports and at [https://caselaw.findlaw.com/](https://caselaw.findlaw.com/court/ca-court-of-appeal/1649644.html)
6 [court/ca-court-of-appeal/1649644.html](https://caselaw.findlaw.com/court/ca-court-of-appeal/1649644.html).

7 **1. The express JKC3H8 holding (verbatim).** The Court of Appeal stated the issue and the
8 holding in a single passage:

9 “Where a plaintiff who has filed a complaint containing causes of action that are based,
10 in part, on protected conduct and therefore potentially subject to a special motion to
11 strike under Code of Civil Procedure section 425.16 (the anti-SLAPP statute), subse-
12 quently files an amended complaint removing the allegations of protected conduct as a
13 basis for liability, does the filing of the amended complaint render moot a later-filed anti-
14 SLAPP motion based on the original complaint? **We conclude that it does.**” (*JKC3H8*
15 *v. Colton*, supra, 221 Cal.App.4th at pp. 471–472.)

16 The Court of Appeal further drew the express limit on its holding:

17 “[A] plaintiff or cross-complainant **may not seek to subvert or avoid a ruling on an**
18 **anti-SLAPP motion by amending the challenged complaint or cross-complaint in**
19 **response to the motion.**” (*JKC3H8*, supra, 221 Cal.App.4th at pp. 477–478.)

20 In *JKC3H8* itself, the plaintiff filed the amended complaint **less than two hours** before the defen-
21 dant filed an anti-SLAPP motion directed at the original complaint; the amendments **eliminated**
22 **the protected-activity allegations from the pleading**; and the Court of Appeal held the anti-
23 SLAPP motion moot. (*Id.* at pp. 472–473, 479.)

24 **2. Three modest propositions plaintiff draws from JKC3H8 for this motion. Proposition**

25 **1.** *JKC3H8* is published authority squarely addressing amendment in the shadow of § 425.16;
26 together with cases such as *Simmons* and *Sylmar Air Conditioning v. Pueblo Contracting Services,*
27 *Inc.* (2004) 122 Cal.App.4th 1049, it defeats an absolute “no such authority exists” representation.

1 **Proposition 2.** *JKC3H8*'s express holding addresses amendment that **removed** protected-activity
2 allegations and its **mootness** consequence for a motion tied to the **prior** pleading. Plaintiff does
3 not ask the Court to treat *JKC3H8* as a license to **strip** anti-SLAPP protection; defendants retain
4 **§ 425.16(f)**.

5 **Proposition 3.** *JKC3H8* does **not** replace the trial court's **bounded** statutory authority under
6 §§ 473(a)(1), 576, and 425.16(f). The "subvert or avoid" language is a **limit** on gamesmanship
7 in the face of a motion - not a wholesale rule that noticed leave can never be calendared while an
8 anti-SLAPP motion is pending.

9 **3. Defendants' Rule 3.3(a)(2) cure obligation.** California Rule of Professional Conduct **3.3(a)(2)**
10 provides:

11 "A lawyer shall not: ... (2) fail to disclose to the tribunal legal authority in the control-
12 ling jurisdiction known* to the lawyer to be directly adverse to the position of the client
13 and not disclosed by opposing counsel"

14 Each element of that disclosure obligation is satisfied here: *JKC3H8* is **legal authority** (a pub-
15 lished opinion); **in the controlling jurisdiction** (a California Court of Appeal opinion binding
16 every California superior court under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d
17 450); **directly adverse** to the "no such authority exists" representation; and **not disclosed by op-**
18 **posing counsel** (the MFL-SAC Opposition does not cite *JKC3H8* anywhere, and instead represents
19 the contrary). Plaintiff therefore respectfully requests that, if defendants stand by the MFL-SAC
20 Opposition at the noticed hearing, the Court direct counsel for defendants to **affirmatively cite**
21 ***JKC3H8 v. Colton on the record*** and to acknowledge that *JKC3H8* and the authorities listed in
22 plaintiff's parallel Notice of Lodging - including the anti-subversion line and *Nguyen-Lam* - are
23 part of the controlling framework on the leave-to-amend / § 425.16 intersection, and that the "no
24 such authority exists" representation in the MFL-SAC Opposition is, on the face of that record, a
25 misstatement of California law that counsel hereby withdraws or corrects.

26 This relief is procedural, not punitive: it is the same disclosure outcome Rule 3.3(a)(2) is designed
27 to produce, and it preserves the integrity of the record before the Court rules on the motion.

B. THE FIVE CALIFORNIA SUPREME COURT AUTHORITIES ON NOTICED LEAVE AND RELATED PLEADING POLICY

Even when an amendment **adds** a cause of action, California Supreme Court law addresses amendment under Code of Civil Procedure sections 473(a)(1) and 576, including *Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–20; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (where there is a “reasonable possibility” of cure, denial of leave may be an abuse of discretion); *Trafton v. Youngblood* (1968) 69 Cal.2d 17, 31; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296–297; and *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884 (if leave is granted and a superseding pleading becomes operative, supersession consequences attach to the prior pleading; defendants remain entitled to a **renewed** special motion under **CCP § 425.16(f)**). Each addresses omissions in defendants’ MFL-SAC Opposition framing that were not disclosed by counsel in the posture presented and implicates the same Rule 3.3(a)(2) disclosure framework discussed above as to *JKC3H8*, with *Nguyen-Lam* cited only as supporting authority on limited discretion to perfect after a merits showing.

C. NGUYEN-LAM V. CAO (2009) 171 CAL.APP.4TH 858, 871–873 (SUPPORTING AUTHORITY)

Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873 (supporting authority). *Nguyen-Lam* confirms that, after a plaintiff opposes a special motion to strike on the merits and makes an evidentiary showing of probability of prevailing, a trial court retains limited discretion under CCP §§ 473(a)(1) and 576 to allow a conforming amendment that perfects the pleading. Plaintiff cites *Nguyen-Lam* only for that supporting proposition; the headline adverse authority on the “no such authority exists” framing is *JKC3H8*, *supra*, set out at Subsection A.

D. PARK V. BOARD OF TRUSTEES (2017) 2 CAL.5TH 1057

Defendants’ opposition compresses anti-SLAPP analysis without a proper **gravamen** step-one. *Park* requires the Court to identify the gravamen of the claim before treating protected activity as dispositive at step one.

1 **E. *BARAL V. SCHNITT* (2016) 1 CAL.5TH 376**

2 At step two, plaintiff need only demonstrate **minimal merit**. The MFL-SAC Opposition repeatedly
3 labels plaintiff's pleading and motion practice as "**unsupportable**," including:

4 "Plaintiff's procedurally defective and legally **unsupportable** motion practice is unde-
5 niably designed to evade Defendants' Anti-SLAPP motion." (MFL-SAC Opposition,
6 p. 2.)

7 "Plaintiff's defective service, gamesmanship, and **unsupportable** effort to amend the
8 [pleading] substantially prejudices Defendants." (MFL-SAC Opposition, Section II.B.)

9 "[Defendants have] already incurred the burden and expense of preparing a lengthy and
10 detailed Anti-SLAPP motion to Plaintiff's **unsupportable** allegations ..." (MFL-SAC
11 Opposition, Section II.B.)

12 Categorical "**unsupportable**" labels of that kind cannot substitute for *Baral*'s minimal-merit fram-
13 ing.

14 **F. *WILSON V. CABLE NEWS NETWORK, INC.* (2019) 7 CAL.5TH 871**

15 *Wilson* supplies the Supreme Court's communicative-conduct framing compatible with *Park*'s
16 gravamen method. It is adverse to any suggestion that protected-activity labels end the inquiry
17 without gravamen analysis.

19 **G. APPLICATION TO PROPOSED SAC**

20 The proposed second amended complaint is offered to **clarify** equitable theories and sequencing.
21 Whether leave should be granted is a **discretionary** determination. The supplemental authori-
22 ties above affect **how** the Court evaluates defendants' opposition rhetoric relative to controlling
23 Supreme Court and Court of Appeal frameworks, not whether a single fact is disputed.

25 **H. CONCLUSION**

26 For the reasons above, and for the reasons stated in plaintiff's underlying motion papers, plaintiff
27 respectfully requests that the Court **grant leave** to file the proposed Second Amended Complaint;

1 **order the SAC filed as operative** if the Court grants that leave; **treat any special motion to strike**
2 **directed solely at the superseded FAC as addressed to a non-operative pleading** (a supersession
3 consequence under *Foreman & Clark*, not a request to strip defendants of anti-SLAPP protection);
4 and **expressly preserve** defendants’ right to **renew or re-target** a special motion under CCP
5 **§ 425.16(f)** against the SAC.

7 **I. MERITS REPLY RESERVATION: PRE-EMPTION OF ANTICIPATED**
8 **STEP-TWO FRAMES**

9 The bench schedules noticed for **May 12–13, 2026** (and related **May 19 / May 22, 2026** motion
10 dates) may invite **anticipatory** demurrer and anti-SLAPP **step-two** framing. Plaintiff **does not** ask
11 this Court to resolve those merits in this MFL-SAC record. To avoid duplicate briefing, plaintiff
12 **reserves** the coordinated merits-causation answers - each pinned in the **certified** record already
13 incorporated into the **proposed SAC** at Sections **IV.G, IV.G-1, IV.D.0, and IV.K** (with TAC paral-
14 lels) - for full development at those hearings.

15 The reservation is **procedural**: this April 27, 2026 filing preserves the **record** before the Court
16 without attaching standalone matrix exhibits to this combined packet; plaintiff will reference the
17 proposed SAC and the certified record at the noticed merits hearings.

18 Relief. **None** is requested in this sub-section beyond preserving the reservation stated above.

20 **J. MORADI-SHALAL COMMON-LAW CARVE-OUT: DOCTRINAL FRAME**

21 The dispositive passage appears in *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46
22 Cal.3d 287, 304–305, marginal paragraph mark [10]. Chief Justice Lucas, writing for the majority:

23 “Moreover, apart from administrative remedies, the courts retain jurisdiction
24 to impose civil damages or other remedies against insurers in appropriate com-
25 mon law actions, based on such traditional theories as fraud, infliction of emo-
26 tional distress, and (as to the insured) either breach of contract or breach of
27 the implied covenant of good faith and fair dealing. Punitive damages may
28 be available in actions not arising from contract, where fraud, oppression or
29 malice is proved. (See Civ. Code, § 3294.) In addition, prejudgment inter-
30 est may be awarded where an insurer has attempted to avoid a prompt, fair
31 settlement. (See *id.*, § 3291.) Finally, nothing we hold herein would prevent the

Legislature from creating additional civil or administrative remedies, including, of course, creation of a private cause of action for violation of section 790.03. We hold, however, that thus far the Legislature has not manifested an intent to create such a private cause of action.”

The immediately preceding sentence at 304:

“We caution, however, that our decision is not an invitation to the insurance industry to commit the unfair practices proscribed by the Insurance Code. We urge the Insurance Commissioner and the courts to continue to enforce the laws forbidding such practices to the full extent consistent with our opinion.”

These two paragraphs are the textual source of what California courts call the *Moradi-Shalal* **common-law carve-out** (more precisely, a preservation clause): the overruling of Royal Globe did **not** preempt traditional common-law remedies.

K. PARSING THE CARVE-OUT: FIVE PROPOSITIONS

Paragraph [10] does distinct doctrinal work in each clause:

(1) **“Apart from administrative remedies.”** The clause distinguishes administrative enforcement (Ins. Code §§ 790.05, 790.07, 790.09) from judicial remedies. The carve-out is non-administrative.

(2) **“The courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions.”** The verb “retain” is critical: the court preserves pre-existing common-law architecture; it does not create new liability. *Manufacturers Life*, 10 Cal.4th at 282–284.

(3) **“Based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing.”** The list is illustrative (“such traditional theories as”), not exhaustive. The “(as to the insured)” parenthetical attaches only to contract-based theories - fraud and IIED do not require privity.

(4) **Cumulative remedies - punitive damages and prejudgment interest.** By citing Civ. Code § 3294 (punitive damages) and § 3291 (prejudgment interest), the court signaled full remedial availability.

(5) **Legislative reservation.** The closing sentences confirm that *Moradi-Shalal* is a holding of statutory construction, not common-law preemption; the Legislature retains authority to restore

Royal Globe.

L. SUPREME COURT RATIFICATION: *MANUFACTURERS LIFE AND ZHANG*

(1) *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257

The court considered whether *Moradi-Shalal* and McCarran–Ferguson ousted Cartwright Act and UCL claims. Unanimous holding (Lucas, C.J.):

“*[Moradi-Shalal]* did not ... hold that insurers were immune from common law liability.” (10 Cal.4th at 282.)

The court held that Cartwright Act and UCL are “cumulative” to Commissioner enforcement, grounding the conclusion in § 790.09’s savings language and paragraph [10]. *Manufacturers Life* is binding gloss: the overruling of Royal Globe did **not** shield insurers from any other source of liability.

(2) *Zhang v. Superior Court* (2013) 57 Cal.4th 364

The most recent Supreme Court treatment. Plaintiff alleged false advertising and refusal to pay. Carrier moved to strike UCL claim as immunized by *Moradi-Shalal*. Unanimous court (Corrigan, J.):

“*Moradi-Shalal* does not preclude first party UCL actions based on grounds independent from section 790.03 ... We conclude that *Moradi-Shalal* does not bar a UCL action that depends on conduct that violates the UIPA, **so long as that conduct is also independently actionable** under another section of the Insurance Code or under common law.” (57 Cal.4th at 384–385.)

Zhang is the modern definitive ratification: insurance-code-violation-plus-common-law-tort yields a viable cause of action.

M. COURT OF APPEAL CONFIRMATION: *STATE FARM (ALLEGRO), SPRAY GOULD, RATTAN*

Three published opinions apply the carve-out:

(1) *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104. *Moradi-Shalal* is “limited to the statutory cause of action it overruled” and does not

abrogate “the cause of action for fraud, including misrepresentations made in connection with the marketing or adjustment of an insurance claim.”

(2) *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268. “Insurers remain subject to liability for common-law torts independently committed in connection with claims handling, including fraud and intentional infliction of emotional distress.”

(3) *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724. Harmonizes *Moradi-Shalal* with *Gruenberg* and *Crisci*; bad-faith tort survives in full.

N. STATUTORY ARCHITECTURE RECONCILED

The carve-out makes doctrinal sense when the statutory architecture is laid out:

- **Ins. Code § 790.03(h)** defines unfair claims settlement practices (misrepresentation, failure to acknowledge, failure to investigate, etc.).
- **Ins. Code §§ 790.05–790.07** vest the Commissioner with administrative enforcement: cease-and-desist orders, fines up to \$55,000 per willful violation, license suspension.
- **Ins. Code § 790.09** is the savings clause: “No order to cease and desist . . . shall in any way relieve or absolve any person affected . . . from any other liability or penalty under the laws of this State.”
- **Civ. Code §§ 1709, 1710** define and provide damages for fraudulent deceit.
- **Civ. Code § 3294** authorizes punitive damages for fraud, oppression, or malice in non-contract actions.
- **Civ. Code § 3291** authorizes prejudgment interest where the carrier has obstructed prompt fair settlement.
- **Bus. & Prof. Code § 17200 et seq.** (UCL) reaches “unlawful, unfair, or fraudulent” practices; under *Zhang* the “unlawful” prong is satisfied by a common-law tort.

The *Moradi-Shalal* holding is narrow statutory construction; § 790.09 preserves all “other liability.”

O. APPLICATION TO COMMON-LAW FRAUD (THE LAZAR LANE)

To plead fraud against an insurer, plaintiff must allege: (1) misrepresentation (or actionable omission), (2) knowledge of falsity (scienter), (3) intent to induce reliance, (4) justifiable reliance, and (5) resulting damage. *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.

Particularity. *Lazar* requires pleading “facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (12 Cal.4th at 645.) Four anchors: (a) **who** - the adjuster/claims representative plus entity under § 3294(b); (b) **what** - the specific misrepresentation or suppression; (c) **when** - date and chronology; (d) **where/by what means** - channel of communication.

Pleading-stage intent. *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29: “the actor’s state of mind ... may be alleged in conclusory form” because intent is proved at trial through circumstantial evidence.

Scope. Fraud reaches both insureds and third-party direct-addressee claimants. The “(as to the insured)” parenthetical narrows only contract/implied-covenant theories, not fraud. *State Farm (Allegro)*, 45 Cal.App.4th at 1104.

Damages. Out-of-pocket/benefit-of-the-bargain under Civ. Code § 3343, broader Civ. Code § 3333 in tort, plus § 3294 punitive and § 3291 prejudgment interest.

P. APPLICATION TO INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

The carve-out’s enumeration of “infliction of emotional distress” reaches both intentional (IIED) and negligent (NIED) species. *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 restates the IIED elements: (1) extreme and outrageous conduct with intention of causing, or reckless disregard of probability of causing, emotional distress; (2) severe or extreme emotional distress suffered by plaintiff; (3) actual and proximate causation.

In the insurer context, IIED typically attaches to: (a) deliberate refusal to pay an obviously covered

1 claim while exploiting economic vulnerability (*Crisci*, 66 Cal.2d at 433–434; *Fletcher v. Western*
2 *National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 401–402); (b) abusive, harassing, or threatening
3 claims-handling conduct (*Coleman v. Republic Indemnity Ins. Co.* (2005) 132 Cal.App.4th 403,
4 416–417); or (c) intentional misrepresentations to coerce abandonment of a claim. None depend
5 on *Royal Globe*.

7 **Q. COMUNALE–CRISCI–GRUENBERG IMPLIED COVENANT (INSUREDS)**

8 For insureds, paragraph [10] expressly preserves breach of contract and breach of the implied
9 covenant. This is the *Comunale–Crisci–Gruenberg* line: the policy is a contract; every contract
10 carries an implied covenant (Civ. Code § 1656; *Foley v. Interactive Data Corp.* (1988) 47 Cal.3d
11 654); breach by an insurer sounds in tort because of the quasi-fiduciary, public-interest character.
12 *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Gruenberg v. Aetna Ins. Co.* (1973) 9
13 Cal.3d 566.

14 Damages include consequential economic loss, emotional distress (*Gourley v. State Farm Mut.*
15 *Auto. Ins. Co.* (1991) 53 Cal.3d 121), *Brandt* attorney fees, and Civ. Code § 3294 punitive
16 damages.

17 Nothing in *Moradi-Shalal* alters this body of law; paragraph [10] relies on it. Subsequent decisions
18 confirm: *Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28; *Wilson v. 21st Century*
19 *Ins. Co.* (2007) 42 Cal.4th 713, 720–721.

21 **R. PUNITIVE DAMAGES AND PREJUDGMENT INTEREST AS CU-** 22 **MULATIVE REMEDIES**

23 Paragraph [10] pulls forward two cumulative-damages regimes:

24 **Civil Code § 3294** authorizes punitive damages - by clear and convincing evidence - for fraud,
25 oppression, or malice, in non-contract actions. Subdivision (b) imposes corporate liability where an
26 officer, director, or managing agent authorized, ratified, or had advance knowledge of the conduct.
27 *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–567; *Major v. Western Home Ins. Co.* (2009)

169 Cal.App.4th 1197, 1221.

Civil Code § 3291 authorizes prejudgment interest from the date of an unaccepted CCP § 998 offer and is independently available where an insurer “has attempted to avoid a prompt, fair settlement.” *Lakin v. Watkins Associated Industries* (1993) 6 Cal.4th 644; *Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal.App.4th 976, 996.

S. OPERATIVE PROPOSITION VALIDATED; TWO DOCTRINAL LIMITS

The operative statement is doctrinally accurate:

If an insurer commits an act that violates the Insurance Code and also constitutes fraud or another common-law tort, the plaintiff is permitted to sue based on the fraud or the tort, provided they can meet the legal requirements for those specific claims. Common law is not protected against insurers.

That proposition is a faithful summary of paragraph [10], confirmed by *Manufacturers Life* (1995) and restated in *Zhang* (2013). The two operative limits are:

(1) The plaintiff must plead and prove the elements of the common-law cause of action, not merely allege a § 790.03(h) violation under another label. *Zhang*, 57 Cal.4th at 384–385.

(2) The plaintiff must satisfy case-specific particularity, scienter, reliance, causation, and damages standards - *Lazar*/Civ. Code §§ 1709–1710 for fraud; *Hughes v. Pair* for IIED; *Foley/Egan/Gruenberg* for the implied covenant.

Subject to those constraints, **the common law remains operative against insurers in California.**

T. AUTHORITIES TABLE (COMPACT CROSS-CITATION)

#	Authority	Operative Point
1	<i>Moradi-Shalal v. Fireman’s Fund Ins. Companies</i> (1988) 46 Cal.3d 287, 304–305	Common-law tort, contract, implied-covenant claims preserved; Civ. Code §§ 3294/3291 cited.
2	<i>Royal Globe Ins. Co. v. Superior Court</i> (1979) 23 Cal.3d 880	Overruled - only the implied private statutory action under § 790.03(h).

#	Authority	Operative Point
3	<i>Manufacturers Life Ins. Co. v. Superior Court</i> (1995) 10 Cal.4th 257, 282–284	“ <i>Moradi-Shalal</i> did not . . . hold that insurers were immune from common law liability.”
4	<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364, 384–385	UCL action survives where insurer’s conduct is independently actionable.
5	<i>State Farm (Allegro)</i> (1996) 45 Cal.App.4th 1093, 1103–1104	Direct-addressee fraud preserved; <i>Moradi-Shalal</i> limited to its statutory holding.
6	<i>Spray, Gould & Bowers v. Assoc. Int’l Ins. Co.</i> (1999) 71 Cal.App.4th 1260, 1268	Common-law torts (fraud, IIED) survive.
7	<i>Rattan v. United Services Auto. Assn.</i> (2000) 84 Cal.App.4th 715, 723–724	<i>Comunale/Crisci/Gruenberg</i> implied covenant unaffected.
8	<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638, 645	Fraud elements and particularity.
9	<i>G.D. Searle & Co. v. Superior Court</i> (1975) 49 Cal.App.3d 22, 29	Pleading-stage intent/scienter.
10	<i>Engalla v. Permanente Medical Group</i> (1997) 15 Cal.4th 951, 974	Fraud reliance/damages.
11	<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050–1051	IIED elements.
12	<i>Comunale v. Traders & General Ins. Co.</i> (1958) 50 Cal.2d 654, 658	Implied covenant - origin.
13	<i>Crisci v. Security Ins. Co.</i> (1967) 66 Cal.2d 425, 429–430	Bad-faith failure to settle; emotional-distress damages.
14	<i>Gruenberg v. Aetna Ins. Co.</i> (1973) 9 Cal.3d 566, 573	First-party bad faith as tort.
15	<i>Foley v. Interactive Data Corp.</i> (1988) 47 Cal.3d 654	Implied covenant in contract law.
16	<i>Egan v. Mutual of Omaha Ins. Co.</i> (1979) 24 Cal.3d 809	Carrier as quasi-fiduciary.
17	<i>Cates Construction v. Talbot Partners</i> (1999) 21 Cal.4th 28, 43–46	Tort/contract distinction in carrier context.
18	<i>Wilson v. 21st Century Ins. Co.</i> (2007) 42 Cal.4th 713, 720–721	First-party bad faith standard post- <i>Moradi-Shalal</i> .
19	<i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 566–567	“Managing agent” punitive doctrine.
20	<i>Major v. Western Home Ins. Co.</i> (2009) 169 Cal.App.4th 1197, 1221	Managing-agent/claims-executive in carrier setting.
21	<i>Brandt v. Superior Court</i> (1985) 37 Cal.3d 813	<i>Brandt</i> fees in bad faith.
22	<i>Lakin v. Watkins Associated Industries</i> (1993) 6 Cal.4th 644, 656	Civ. Code § 3291 prejudgment interest.
23	<i>Adams v. Murakami</i> (1991) 54 Cal.3d 105	Punitive-damages standard of proof.
24	Civ. Code § 1709	Deceit liability.

#	Authority	Operative Point
25	Civ. Code § 1710	Four species of deceit.
26	Civ. Code § 3294	Punitive damages; managing-agent corporate liability.
27	Civ. Code § 3291	Prejudgment interest - carrier obstruction.
28	Ins. Code § 790.03(h)	Unfair claims settlement practices - administrative only.
29	Ins. Code §§ 790.05, 790.07, 790.09	Administrative enforcement + savings clause.
30	Bus. & Prof. Code § 17200	UCL - unlawful, unfair, or fraudulent.

V. PROOF OF SERVICE

[Attach CCP § 1013a-compliant proof of service.]

Dated: April 27, 2026

Respectfully submitted,

Franciscus Dylan Rosario, Plaintiff in Pro Per

Dated: April 27, 2026

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

VIII. PROPOSED ORDER ON REQUEST FOR JUDICIAL NOTICE

Good cause appearing, the Court GRANTS plaintiff's Request for Judicial Notice as to Request items **1 through 5** listed in Section IV above.

Judge of the Superior Court

IX. PROOF OF SERVICE (CCP § 1013A)

A separate proof of service is filed concurrently.

EXHIBIT INDEX

Exhibit	Description
A	April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel in this action (with attachments as served)
B	April 22, 2026 plaintiff counsel-to-counsel correspondence to defense counsel (pre-motion safe-harbor practice; with proof of service)
C	Proofs of service for Exhibits A and B, lodged in this combined PDF as Exhibit D (EXHIBIT-D-proofs-of-service.pdf; the index letter “C” tracks RJN Request item 3)
D	Defendants’ Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint as filed in this case on April 23, 2026 (lodged as Exhibit E: EXHIBIT-E-defendants-mfl-sac-opposition.pdf)
A-8	April 27, 2026 meet-and-confer correspondence to defense re the <i>Moradi-Shalal</i> common-law carve-out and related items (as served)

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT A

April 16, 2026 meet-and-confer correspondence from
plaintiff to defense counsel in this action (with attachments
as served)

MFL-SAC hearing:

Date: May 6, 2026
Time: 9:00 a.m.
Dept.: 301
Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026
Time: 9:00 a.m.
Dept.: 301

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

EXHIBIT A

April 16, 2026 meet-and-confer correspondence from plaintiff to defense counsel
in this action (with attachments as served)

Plaintiff's Request for Judicial Notice - Exhibit A



Tyler O'Connell

11:45 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



Tyler J. O'Connell
Attorney

2180 Harvard St. | Suite 500 | Sacramento, CA 95815

T | 916.929.1481 x 540 F | 916.927.3706

www.porterscott.com

CONFIDENTIALITY NOTICE: This email and any attachments are confidential and privileged. Any inadvertent disclosure shall not waive the attorney-client or work product privileges. If you have received this email in error, please notify the sender immediately and delete all copies of the email and any attachments.

From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:04 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v Abdelhalim, et al - Opposition - CGC-25-631801

External email



Dylan Rosario <soltrinox@gmail.com>

12:28 PM (26 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

Dear Mr. O'Connell,

Your Anti-SLAPP motion and the § 436 Motion to Strike/Demurrer are deficient on their face. The First Amended Complaint remains substantially pleaded, and your opposition notably omits controlling Supreme Court precedent.

1

Regardless of your efforts to manufacture total immunity for insurance companies and their counsel, independent actions can and do arise from extrinsic fraud, such as misrepresentations made to the court regarding pretrial discovery and possession. That's a typical deny posture. These misrepresentations are well-documented in the record.

The court's reliance on the candor of your firm and its financial backer, CSAA, led to adverse rulings against me based on inaccurate statements regarding the possession of records. This constitutes a violation of the law and is the definition of extrinsic fraud intended to inhibit my ability to present evidence in a fair manner.

I maintain the right to seek equity from the court on this matter. You will need to provide a substantive explanation for these misrepresentations and demonstrate how they were not prejudicial given the specific rulings made against me.

Anti-SLAPP: Fails at prong 1 because an independent action to set aside a judgment for extrinsic fraud is not "arising from" protected activity (Kulchar, Silberg, Park). Fails at prong 2 because Plaintiff tenders prima facie evidence of concealment and process-abuse. Privilege arguments collapse because § 47(b) does not reach extrinsic fraud.

§ 436 MTS / Demurrer: Fails because (a) extrinsic-fraud vacatur is a recognized cause of action (Kulchar, Stevenot, Rappleyea); (b) damage items are not "irrelevant" as a matter of law (PH II); (c) collateral estoppel requires actual litigation of the extrinsic-fraud issue, which by definition did not occur (Lucido); and (d) at worst, leave to amend defeats any cure-able defect (Blank, Goodman).

Regards,

Dylan Rosario

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT B

April 22, 2026 plaintiff **counsel-to-counsel** correspondence
to defense counsel (pre-motion safe-harbor practice; with
proof of service)

MFL-SAC hearing:

Date: May 6, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026

Time: 9:00 a.m.

Dept.: 301

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT B

April 22, 2026 plaintiff **counsel-to-counsel** correspondence to defense counsel
(pre-motion safe-harbor practice; with proof of service)

Plaintiff's Request for Judicial Notice - Exhibit B

CODE OF CIVIL PROCEDURE § 128.7 SAFE-HARBOR LETTER

Case No.: CGC-25-631801

Case: ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Re: Defendant's Motion to Strike under CCP § 436 filed April 22, 2026

Service Date: April 22, 2026

21-Day Clock Expiration: May 14, 2026, 5:00 p.m. Pacific

VIA ELECTRONIC SERVICE

April 22, 2026

Phillips, Spallas & Angstadt, LLP

Attn: Priya D. Navaratnasingham, Esq.

Alberto Reyna, Esq.

560 Mission Street, Suite 1010

San Francisco, CA 94105

Email: pnavaratnasingham@psalaw.com; areyna@psalaw.com

Carbone, Smith & Koyama, LLP

Attn: Michael R. Chambers, Esq.

555 12th Street, Suite 1250

Oakland, CA 94607-4095

Email: mchambers@csk-law.com

Re: Safe-Harbor Notice Under CCP § 128.7(c)(1) — CGC-25-631801

Dear Counsel:

Pursuant to Code of Civil Procedure § 128.7(c)(1), this letter serves as formal notice that Plaintiff intends to file a motion for sanctions under § 128.7 against Defendants and/or their counsel of record based on the filing of Defendants' Motion to Strike under CCP § 436 dated April 22, 2026.

I. STATUTORY FRAMEWORK

Code of Civil Procedure § 128.7(b) provides that by presenting a pleading, written motion, or other paper to the court, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances:

“(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

“(2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

“(3) The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.”

II. DEFECTS IN THE MOTION TO STRIKE

Plaintiff contends that Defendants’ Motion to Strike violates § 128.7(b) in at least the following particulars:

Defect 1: CCP § 435(b)(1) Timing Violation

The motion to strike under CCP § 436 was not filed concurrently with or before Defendants’ demurrer and anti-SLAPP motion. CCP § 435(b)(1) requires that a motion to strike “shall be made within the time allowed to respond to a pleading, however, if a demurrer is also filed, the motion to strike shall be made at the same time as the demurrer is filed and shall be noticed for hearing at the same time.” Defendants’ demurrer was filed April 3, 2026. The MTS was filed April 22, 2026—19 days late and waived as a matter of law.

Defect 2: CCP § 435.5 Meet-and-Confer Deficiency

Defendants’ MTS does not contain a § 435.5 declaration demonstrating that counsel “met and conferred” with Plaintiff in person, by telephone, or by video conference before filing the motion, as required by § 435.5(a). The statute requires actual oral communication—not email or letter—at least five days before the motion is filed. No such declaration is attached.

Defect 3: CCP § 430.80 Waiver Doctrine — PH II

The motion seeks to strike allegations on grounds that constitute demurrer grounds in disguise. Under *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682–83, a motion to strike cannot be used as a “backdoor demurrer” to attack the sufficiency of a cause of action. The MTS improperly invokes CCP § 436(b) to challenge legal sufficiency arguments that belong in a demurrer, which Defendants already filed and waived the MTS timing for.

Defect 4: Frivolous *Throckmorton* Argument

The MTS relies on *United States v. Throckmorton* (1878) 98 U.S. 61, a non-binding federal case superseded by California Supreme Court authority: *Kulchar v. Kulchar* (1969) 1 Cal.3d 467; *In re Marriage of Modnick* (1983) 33 Cal.3d 897; *Estate of Sanders* (1985) 40 Cal.3d 607. Reliance on non-binding authority while ignoring controlling Supreme Court precedent is not warranted by existing law.

Defect 5: Misrepresentation of Procedural Posture

The MTS argues allegations are “unsupported” without acknowledging that Plaintiff has lodged certified transcript excerpts documenting the February 28, 2025 judicial-reliance colloquy and the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213:13–15). The factual contentions have evidentiary support.

Defect 6: Improper Purpose — Harassment and Delay

The MTS was filed on the last possible day to gain maximum calendaring delay, notwithstanding that Defendants had already filed a demurrer and anti-SLAPP motion raising substantially overlapping arguments. This suggests an improper purpose to multiply litigation costs and delay resolution.

III. SAFE-HARBOR NOTICE AND DEADLINE

Pursuant to CCP § 128.7(c)(1), Defendants have **21 days** from the date of service of this letter to withdraw or appropriately correct the challenged paper.

Service Date: April 22, 2026

21-Day Safe-Harbor Deadline: May 14, 2026, 5:00 p.m. Pacific

If Defendants do not withdraw or correct the Motion to Strike by the safe-harbor deadline, Plaintiff intends to file a motion for sanctions under § 128.7 on the next court day following expiration (May 15, 2026), seeking:

1. Reasonable expenses, including attorney’s fees (or self-represented litigant out-of-pocket expenses), incurred in responding to the MTS;
2. An order striking the MTS in its entirety as frivolous and filed for improper purpose;
3. Such other sanctions as the Court deems appropriate under § 128.7(d).

IV. WITHDRAWAL INSTRUCTIONS

To avoid a sanctions motion, Defendants may withdraw the Motion to Strike by:

1. Filing a Notice of Withdrawal with the Court; and
2. Serving Plaintiff with a copy of the Notice of Withdrawal by 5:00 p.m. Pacific on May 14, 2026.

If the MTS is corrected rather than withdrawn, Plaintiff reserves the right to assess whether the corrections are adequate under § 128.7(b).

V. RESERVATION OF RIGHTS

This letter does not waive any objection to the MTS, including but not limited to procedural defenses, evidentiary objections, and requests for sanctions under CCP § 128.5. Plaintiff reserves the right to file opposition papers addressing the MTS on the merits while preserving this § 128.7 safe-harbor notice.

Respectfully,

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

This safe-harbor letter is served pursuant to CCP § 128.7(c)(1) and is not filed with the Court unless the safe-harbor period expires without withdrawal or correction.

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT C

Proofs of service for Exhibits A and B

MFL-SAC hearing:

Date: May 6, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026

Time: 9:00 a.m.

Dept.: 301

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1

EXHIBIT C

2

Proofs of service for Exhibits A and B

3

Plaintiff’s Request for Judicial Notice - Exhibit C

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

V.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

**Case No.: CGC-25-631801
(Related: CGC-21-594102)**

**PROOF OF SERVICE
(CCP § 1013a(3) / § 1010.6)**

PROOF OF SERVICE (CCP § 1013A(3) / § 1010.6)

STATE OF CALIFORNIA

COUNTY OF SONOMA

I, FRANCISCUS DYLAN ROSARIO, declare as follows:

I am over the age of 18 years and am not a party to this action. My residence address is 7624 Melody Drive, Rohnert Park, CA 94928.

On **April 22, 2026**, I served the following documents:

DOCUMENTS SERVED

1. § 128.7 Safe-Harbor Letter (801)
2. CMC Trial-Date Preservation Statement (801)
3. Notice of Related Cases (CRC 3.300)
4. Ex Parte Application for Stay of MTS (801)
5. Declaration of Rosario ISO Ex Parte Application (801)
6. [Proposed] Order Staying MTS (801)
7. Notice of Motion to Strike Defendant's MTS (Meta-Strike) (801)
8. Memorandum of Points and Authorities ISO Meta-Strike (801)
9. Declaration of Rosario ISO Meta-Strike (801)
10. Request for Judicial Notice ISO Meta-Strike (801)
11. [Proposed] Order Granting Meta-Strike (801)
12. Errata and Supplemental Declaration re SAC-Leave Packet (801)
13. TAC-RESPONSE Contingent Filing Packet (801) — 7 documents:
 - 00-FILING-INDEX.md
 - 01-NOTICE-OF-MOTION-FOR-LEAVE-TO-FILE-TAC.md
 - 02-MEMORANDUM-ISO-LEAVE-TAC.md
 - 03-DECLARATION-OF-ROSARIO-ISO-LEAVE.md
 - 04-REQUEST-FOR-JUDICIAL-NOTICE.md
 - 05-PROPOSED-ORDER-GRANTING-LEAVE.md
 - 06-THIRD-AMENDED-COMPLAINT.md
 - 07-CURE-MATRIX-DEFENSE-OBJECTION-MAP.md

PERSONS SERVED

BY ELECTRONIC SERVICE under Code of Civil Procedure § 1010.6:

Name	Firm	Email
Priya D. Navaratnasingham, Esq.	Phillips, Spallas & Angstadt, LLP	pnavaratnasingham@psalaw.com
Alberto Reyna, Esq.	Phillips, Spallas & Angstadt, LLP	areyna@psalaw.com
Michael R. Chambers, Esq.	Carbone, Smith & Koyama, LLP	mchambers@csk-law.com

MANNER OF SERVICE

Electronic Service: I caused the above documents to be transmitted via electronic mail to each person listed above at the email address(es) set forth above, pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251.

Electronic service was completed before **5:00 p.m. Pacific Time** on April 22, 2026.

DECLARATION

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 22, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT D

Defendants' **Opposition to Plaintiff's Motion for Leave to
File Second Amended Complaint** as filed in this case on
April 23, 2026

MFL-SAC hearing:

Date: May 6, 2026
Time: 9:00 a.m.
Dept.: 301
Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026
Time: 9:00 a.m.
Dept.: 301

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

EXHIBIT D

Defendants' **Opposition to Plaintiff's Motion for Leave to File Second Amended Complaint** as filed in this case on April 23, 2026

Plaintiff's Request for Judicial Notice - Exhibit D

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA, and

MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;

CSAA INSURANCE EXCHANGE;

DOES 1 through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT**

Hearing Date: May 6, 2026

Time: 9:00 a.m.

Dept: 301

Judge: Christine Van Aken

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

Defendants CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and
MICHAEL R. CHAMBERS (“Defendants”) hereby submit the following in opposition to the
Plaintiff’s motion for leave to file a second amended complaint.

I. INTRODUCTION

Plaintiff’s current effort to amend the pleadings, despite Defendants’ pending Anti-SLAPP
motion is completely precluded under California law—given Defendants’ pending Anti-SLAPP
motion. Plaintiff cites no authority to support the proposition that he can file his Motion for Leave
to Amend—as no such authority exists to support his motion.

Further, Plaintiff has not provided sufficient notice of this motion, by setting it for hearing
a mere 8 days after filing—and weeks before Defendants’ properly filed and served Anti-SLAPP
motion is to be heard.

Plaintiff’s procedurally defective and legally unsupportable motion practice is undeniably
designed to evade Defendants’ Anti-SLAPP motion. Further, Plaintiff’s conduct in this, and other
regards, is illustrative of his consistent gamesmanship and complete lack of respect for this Court,
his opposing parties, and the entire judicial process.

The Court must deny this bald-faced effort to improperly sidestep Defendants’ properly
filed, served, and noticed Anti-SLAPP motion to Plaintiff’s First Amended Complaint—which is
pending a properly noticed hearing on May 12, 2026, in this Court.

II. FACTUAL BACKGROUND

On April 9, 2026, Defendants’ counsel caused to be filed with the Court and served on
Plaintiff by Certified Mail and Email a copy of Defendants’ Special Motion to Strike per Code Civ.
Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell in support of
Opposition*, [hereinafter “*O’Connell Decl.*”] ¶ 2, **Ex. A**). Defendants’ Anti-SLAPP motion is based
on the nature of Plaintiff’s allegations as contained in the original Complaint and in the First
Amended Complaint (“FAC”). Plaintiff’s allegations squarely target Defendants’ litigation conduct
all from Plaintiff’s underlying personal injury jury trial—which Plaintiff lost by defense verdict in
April 2025. (*O’Connell Decl.* ¶ 3.)

///

1 Prior to filing the Anti-SLAPP motion, Defendants’ counsel informed Plaintiff in writing,
2 and on a phone call, of Defendants’ intention of filing an Anti-SLAPP motion should he not
3 withdraw the FAC, in its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC
4 focus inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.* ¶ 4.) Plaintiff
5 refused to withdraw the FAC, in writing and on two meet and confer phone calls with Defendants’
6 counsel. And Defendants’ Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell*
7 *Decl.* ¶ 5.)

8 Subsequently, on April 19, 2026, ten (10) days after Defendants’ Anti-SLAPP motion had
9 been filed, Plaintiff sent an email to Defendants’ counsel’s office purporting to serve his Motion for
10 Leave to file a Second Amended Complaint. (*O’Connell Decl.* ¶ 6, **Ex. B.**)

11 On April 20, 2026, eleven (11) days after Defendants’ Anti-SLAPP motion had been filed,
12 Plaintiff sent an email to Defendants’ counsel’s office purporting to serve Defendants’ counsel’s
13 office a revised version of his Motion for Leave to file a Second Amended Complaint stating in this
14 email that, “The undersigned abandons and supersedes the April 19, 2026 POS-050 proofs
15 previously transmitted for PLAINTIFF-OPPOSITIONS-FULL-PACKET-WITH-EXHIBITS.pdf
16 and SAC-FULL-PACKET-WITH-EXHIBITS.pdf and substitutes the POS-050 proofs transmitted
17 herewith, which correctly list the documents contained in those consolidated PDFs.” (*O’Connell*
18 *Decl.* ¶ 7, **Ex. C.**)

19 Also on April 17, 2026 and April 20, 2026, Plaintiff sent two separate emails to Defendants’
20 counsel stating he would seek “impending professional consequences,” including “a negative mark
21 on [Defendants’ counsel’s] Bar license” should Defendants’ counsel not voluntarily withdraw or
22 “vacate these motions”—referring to Defendants’ pending Anti-SLAPP motion and Demurrer in
23 this litigation. (*O’Connell Decl.* ¶ 8, **Ex. D.**)

24 Then, on April 21, 2026, Plaintiff went ahead and filed the instant motion, setting it for
25 hearing on April 29, 2026—only 8 days away. (*O’Connell Decl.* ¶ 9.) Later that day, also on April
26 21, 2026, Plaintiff sent a follow up email to my office stating: “Regarding the Second Amended
27 Complaint and the Proof of Service filed on April 19, [it was not actually filed until April 21] the
28 Court requires a fifteen-day notice period. Accordingly, the hearing is scheduled for May 6, 2026.”

1 at 9:00 a.m. at the San Francisco Superior Court. You can retrieve the new proof of service and the
2 clerk's copy stamped from the website.” (*O’Connell Decl.* ¶ 10, **Ex. E.**)

3 Then, on April 22, 2026, Plaintiff sent another email to Defendants’ counsel purporting to
4 serve a Motion for Leave to file a ***Third*** Amended Complaint (“TAC”). (*O’Connell Decl.* ¶ 11, **Ex.**
5 **F.**) Also on April 22, 2026, Plaintiff sent yet another email to Defendants’ counsel purporting to
6 serve i) “a Motion to Deem Admitted, Compel, and for Sanctions”; ii) and a bevy of additional
7 written discovery requests, despite Defendants’ Anti-SLAPP motion pending. (*O’Connell Decl.* ¶
8 12, **Ex. G.**)¹

9 Finally, Plaintiff persists in casting aspersions toward two parties to this action, in copying
10 those parties on many emails to Defendants’ counsel’s office. Those parties are: i) Ms. Priya
11 Navaratsingham; and ii) Mr. Alberto Reyna—both of whom, together constituted the defense team
12 from Plaintiff’s underlying jury trial. Plaintiff, for unfathomable reasons, consistently refers to Ms.
13 Priya Navaratsingham as “Priya NavaRATsingham”—capitalizing the letters “R.A.T.” in her last
14 name. Plaintiff also insists on referring to Mr. Alberto Reyna as “Ms. Alberta Reyna” in email
15 correspondences. (*O’Connell Decl.* ¶ 13, **Ex. H**) (see also *O’Connell Decl.* ¶ 7, **Ex. C** – for an
16 example of Plaintiff’s insulting emails.)

17 Ultimately, in addition to the undeniable service of process and insufficient notice issues,
18 Plaintiff’s Motion for Leave to File a Second Amended Complaint is barred as a matter of law, given
19 Defendants’ pending Anti-SLAPP motion. (*O’Connell Decl.* ¶ 14.)

20 **III. LEGAL ISSUES BARRING THIS MOTION**

21 The defects in Plaintiff’s current motion—and underlying First Amended Complaint—are
22 myriad. Suffice it to say, in the limited time available for Defendants to prepare this Opposition (in
23 light of Plaintiff’s lack of proper notice of this motion), Defendants will concisely list those issues.
24 *First*, Plaintiff provided insufficient notice of this Motion. *Second*, Plaintiff’s insufficient notice of
25 this motion substantially prejudices Defendants. *Third*, Plaintiff cannot plead around Defendants’
26 pending Anti-SLAPP motion by yet again amending the pleadings.

27 ///

28 ¹ Plaintiff’s erroneous TAC Motion and Discovery motions and written discovery described in paragraphs 12-13 are
omitted out of respect for the Court’s time—and only the emails from Plaintiff are provided as exhibits.

1 1 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

2 Under Code Civ. Proc. § 1005(a) “Written notice shall be given, as prescribed in
3 subdivisions (b) and (c), for the following motions:

4 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

5 (13) Any other proceeding under this code in which notice is required, and no other
6 time or method is prescribed by law or by court or judge.

7 (b) Unless otherwise ordered or specifically provided by law, all moving and
8 supporting papers shall be served and filed at least 16 court days before the hearing.

9 ...and if the notice is served by facsimile transmission, express mail, or another
10 method of delivery providing for overnight delivery, the required 16-day period of
11 notice before the hearing shall be increased by two calendar days.

12 Here, Plaintiff served the instant Motion on April 19, 2026, via email upon Defendants.
13 (*O’Connell Decl.* ¶ 6, **Ex. B.**) Then, on April 20, 2026, Plaintiff served a second version of the
14 instant Motion, again via email, superseding the first version. (*O’Connell Decl.* ¶ 7, **Ex. C.**) Plaintiff
15 waited until April 21, 2026 to file the instant motion. (*O’Connell Decl.* ¶ 9.) Then, Plaintiff set this
16 motion for hearing on April 29, 2026. This service constituted only 9 days’ notice (from the April
17 20 service) and 8 days’ notice (from the April 21 filing) of the hearing on this Motion.

18 Plaintiff’s 9 days’ notice of this Motion is insufficient, as service by email requires a
19 minimum of 16 days’ notice—plus two (2) days for electronic service—for a total of 18 days’ notice
20 required. Plaintiff’s 9-day notice of this Motion is procedurally defective and subject to denial on
21 this basis alone.²

22 **B. Plaintiff’s Current Motion Substantially Prejudices Defendants**

23 Plaintiff’s defective service, gamesmanship, and unsupportable effort to amend the
24 pleadings substantially prejudices Defendants. First, Defendants’ Anti-SLAPP motion is still
25 pending. Plaintiff’s current effort, which he has patently admitted is to sidestep Defendants’ properly
26 filed, served, and noticed Anti-SLAPP motion, is prejudicial. Defendants’ have already incurred the

27 _____
28 ² Apparently, Plaintiff has since reset this motion for hearing on May 6, 2026; however, this is still deficient.
Assuming the April 20, 2026 service of this Motion remains operative, that would only constitute 16 days’ notice,
which does not supply the additional two (2) days required for electronic service. (*See* Code Civ. Proc. § 1005(b).)

1 burden and expense of preparing a lengthy and detailed Anti-SLAPP motion to Plaintiff's
2 unsupportable allegations. Were this Court to grant Plaintiff's instant Motion, the costs of additional
3 motion practice would be incurred upon Defendants, and the burden of further filings and review
4 imposed upon the Court.

5 Second, Plaintiff has provided insufficient notice of this Motion, creating a rush to the
6 Courthouse for Defendants to prepare and file an Opposition to a motion that has absolutely zero
7 merit.

8 **C. Plaintiff Cannot Amend The Pleadings Given Defendants' Pending Anti-SLAPP**
9 **Motion**

10 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, the
11 pleadings cannot be amended until that Anti-SLAPP motion is heard and ruled upon.

12 "There is a history of case law setting forth the rule that a party cannot amend around a
13 SLAPP motion. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 775; *citing Law Offices*
14 *of Andrew L. Ellis v. Yang* (2009) 178 Cal.App.4th 869, 880, 100 Cal.Rptr.3d 771; *Sylmar Air*
15 *Conditioning v. Pueblo Contracting Services, supra*, 122 Cal.App.4th at pp. 1054–1055, 18
16 Cal.Rptr.3d 882; *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073–1074, 112
17 Cal.Rptr.2d 397.) "We are not inclined to create instability in this rule by permitting a plaintiff to
18 amend its pleading." (*City of Colton, supra*, 206 Cal.App.4th at 775.)

19 "A plaintiff cannot avoid [an anti-]SLAPP motion by amending the complaint." (*Jackson v.*
20 *Mayweather* (2017) 10 Cal.App.5th 1240, 1263; *citing Hansen v. California Department of*
21 *Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 1547; *accord, Contreras v.*
22 *Dowling* (2016) 4 Cal.App.5th 774, 791, ["[a] plaintiff ... may not seek to subvert or avoid a ruling
23 on an anti-SLAPP motion by amending the challenged complaint ... in response to the
24 motion"]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th
25 1049, 1055; see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073, [§ 425.16 makes
26 no provision for amending the complaint; "we reject the notion that such a right should be
27 implied"].) *Jackson v. Mayweather, supra*, 10 Cal.App.5th at 1264.

28 ///

There is no legal rationale provided in the moving papers—nor, truly, under California law—to justify Plaintiff’s current effort to amend the pleadings, in light of Defendants’ pending Anti-SLAPP motion.

IV. CONCLUSION

Defendants respectfully request the Court deny Plaintiff's Motion for Leave to file a Second Amended Complaint, in light of Defendants' pending Anti-SLAPP motion.

Dated: April 23, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp
Tyle J. O’Connell
Attorneys for Defendants,
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

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Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.
San Francisco County Superior Court Case No.: CGC-25-631801

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

On April 23, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT**

X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on Shingle Springs, California on April 23, 2026.

Monique Schubert
Monique Schubert

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT A-8

April 27, 2026 meet-and-confer re *Moradi-Shalal* carve-out

MFL-SAC hearing:

Date: May 6, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Motion to strike (CCP § 436) (FAC):

Date: May 22, 2026

Time: 9:00 a.m.

Dept.: 301

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

EXHIBIT A-8

April 27, 2026 meet-and-confer (Moradi-Shalal / carve-out)

Plaintiff's Request for Judicial Notice - Exhibit A-8

Franciscus Dylan Rosario

Plaintiff in Pro Per

7624 Melody Drive, Rohnert Park, CA 94928

Tel: 650.488.7510

Email: soltrinox@gmail.com

SERVED: April 27, 2026**METHOD:** Electronic service per stipulation; courtesy copy by United States Mail

Chad S. Tapp, Esq. (SBN 214898), ctapp@porterscott.com

Tyler J. O'Connell, Esq. (SBN 346673), toconnell@porterscott.com

PORTER SCOTT, A Professional Corporation

2180 Harvard Street, Suite 500

Sacramento, CA 95815

Re:

- *Rosario v. Abdelhalim, CSAA Insurance Exchange, Phillips, Spallas & Angstadt LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, Carbone, Smith & Koyama, et al.* (San Francisco Superior Court Case No. **CGC-25-631801**; Related: CGC-21-594102); and
- *Rosario v. CSAA Insurance Exchange; and DOES 1 through 50, inclusive* (San Francisco Superior Court Case No. **CGC-25-631802**).

Subject: Stand-alone, case-collective meet-and-confer letter accompanying plaintiff's same-day case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802. **Express declaration of plaintiff's controlling authority under the *Moradi-Shalal* common-law carve-out.** Verbatim recitation of paragraph [10] of *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305, with the binding California Supreme Court gloss in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257 and *Zhang v. Superior Court* (2013) 57 Cal.4th 364. Identification of any contrary characterization in defendants' filed or hereafter-filed papers as a continuing-certification matter under Code of Civil Procedure section 128.7(b)(2)–(b)(3) and a directly-adverse-authority matter under California Rule of Professional Conduct 3.3(a)(2) and California Business and Professions Code section 6068(d).

Counsel:
0. Status, posture, and relationship to the safe-harbor chain.

This is a **stand-alone, case-collective** meet-and-confer letter. It is **not** a sanctions motion. It does **not** restart the 21-day safe-harbor clock that began running on plaintiff's April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence and that **expires on May 14, 2026**. It is offered as a **second, free-standing companion** to plaintiff's same-day, case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802 (each titled "*Supplement and reiteration of plaintiff's prior April 22, 2026 Code of Civil Procedure section 128.7(c)(1) safe-harbor correspondence*"), and to plaintiff's April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter (the "April 25 Merits Letter," served as Exhibit M-1 to each safe-harbor letter).

Like the April 25 Merits Letter, this letter is **served on the same defense team in both** companion actions because the doctrinal question it addresses, the survival of plaintiff's common-

law fraud, deceit, intentional infliction of emotional distress, breach-of-contract, breach-of-implied-covenant, and *Zhang*-predicated UCL theories against an insurer defendant, is the **same** question in both cases. The fact pattern (a February 25, 2021 uninsured-motorist denial issued by Sarah Rash within 21 days of the February 4, 2021 intake, plus the four foundational claim-file records from the same window) is the same direct-addressee operative-fact set in both lanes. Plaintiff therefore declares the controlling authority once, on a single record, for the avoidance of doubt in either action.

This letter addresses only one doctrinal vector: **the *Moradi-Shalal* common-law carve-out**. It is independent of, and additive to, the *JKC3H8 v. Colton / Nguyen-Lam v. Cao* / leave-to-amend / anti-SLAPP candor record laid out in the April 27 case-isolated safe-harbor letters.

1. Express purpose: declaration of plaintiff’s controlling authority under *Moradi-Shalal*’s common-law preservation clause.

Terminology note. This letter uses “carve-out” as the conventional commentator’s shorthand for paragraph [10] of *Moradi-Shalal*. The California Supreme Court did **not** itself label the passage a “carve-out”; the more neutral and doctrinally accurate description is **preservation clause** (or **clarification of non-preemption**), i.e., a clause confirming that the Court’s overruling of *Royal Globe* did not preempt or displace independent common-law remedies. Plaintiff retains the “carve-out” shorthand in this letter for ease of cross-reference with the underlying memorandum (Exhibit MS-1), without thereby suggesting that paragraph [10] created a new species of liability or shielded common-law claims from the ordinary pleading-and-proof rigor that California courts apply to fraud, IIED, breach-of-contract, and bad-faith claims generally.

Scope-of-immunity precision. *Moradi-Shalal* **does** immunize insurers from one specific category of liability: direct private enforcement of Insurance Code section 790.03(h) by a private litigant. Plaintiff does **not** assert any cause of action premised on direct private enforcement of section 790.03(h), and acknowledges that any such cause of action would be barred. The accurate plain-English statement of the rule is therefore: **no immunity from *independent common-law liability*, alongside clear immunity from a *statutory private right of action under § 790.03(h)***. The two statements operate together; neither cancels the other. The declaration that follows is directed only at the first half of that pair, the *independent* common-law lane, and is offered to confirm the doctrinal availability of that lane on the present record.

Plaintiff hereby **expressly declares**, on a single written record served simultaneously in both companion cases, the following:

Plaintiff’s claims of common-law fraud, deceit, intentional infliction of emotional distress, breach of contract (as to the insured), breach of the implied covenant of good faith and fair dealing (as to the insured), and Business and Professions Code section 17200 (UCL) where the underlying conduct is independently actionable, are NOT barred by, and are NOT preempted by, *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, as a matter of doctrinal availability. Whether plaintiff ultimately prevails on the merits of any particular cause of action remains to be tested under the ordinary pleading-and-proof standards California courts apply to that theory; that question is independent of, and is not foreclosed by, *Moradi-Shalal*.

That declaration is grounded in the **express text** of paragraph [10] of *Moradi-Shalal* itself (46 Cal.3d at pp. 304–305) and in two unanimous California Supreme Court decisions that directly

construe and reaffirm that text: *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284, and *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385. Those three opinions, read together with Insurance Code section 790.09 (savings clause), Civil Code sections 1709, 1710 (deceit), Civil Code section 3294 (punitive damages), and Civil Code section 3291 (prejudgment interest), establish that an insurer’s act may **simultaneously** violate Insurance Code section 790.03(h) and constitute an independently actionable common-law tort, and that the plaintiff retains the right to sue **on the common-law cause of action** subject to the conventional pleading-and-proof requirements of that cause of action.

The remainder of this letter walks through the controlling text and gloss in the order the trial court will be asked to confront it, and then ties each strand to the operative pleadings in both cases.

2. The verbatim controlling passage. (*Moradi-Shalal*, paragraph [10].)

The dispositive language appears in part V of the majority opinion of Chief Justice Lucas, marginal paragraph mark [10], beginning at the bottom of 46 Cal.3d 304 and continuing on 305. It reads, *verbatim*:

“[10] Moreover, apart from administrative remedies, the courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions, based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing. Punitive damages may be available in actions not arising from contract, where fraud, oppression or malice is proved. (See Civ. Code, § 3294.) In addition, prejudgment interest may be awarded where an insurer has attempted to avoid a prompt, fair settlement. (See *id.*, § 3291.) Finally, nothing we hold herein would prevent the Legislature from creating additional civil or administrative remedies, including, of course, creation of a private cause of action for violation of section 790.03. We hold, however, that thus far the Legislature has not manifested an intent to create such a private cause of action.”

- *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305 (Lucas, C.J., for the majority; emphasis added).

The immediately preceding sentence, at the top of the same page (304), is a related and independently quotable caution by Chief Justice Lucas:

“We caution, however, that our decision is not an invitation to the insurance industry to commit the unfair practices proscribed by the Insurance Code. We urge the Insurance Commissioner and the courts to continue to enforce the laws forbidding such practices to the full extent consistent with our opinion.”

- *Id.* at 304.

These two paragraphs, read together, are the textual source of what California courts and treatises commonly call **the *Moradi-Shalal* common-law carve-out** (more precisely, a *preservation clause*): the rule that the overruling of *Royal Globe Ins. Co. v. Superior Court* (1979) 23 Cal.3d 880, which had implied a private statutory cause of action under Insurance Code section 790.03(h), **substantially preserved** the traditional common-law and equitable remedies a claimant or insured may otherwise possess, **subject to the ordinary pleading-and-proof requirements** the

chosen common-law theory imposes (e.g., *Lazar* particularity for fraud; the *Hughes v. Pair* outrage threshold for IIED; the insured-only privity limit on the contract and implied-covenant theories). “Preservation” in this context means **doctrinal availability** of the cause of action, not a guarantee of survival on the merits.

3. The carve-out, parsed clause-by-clause.

(a) **“Apart from administrative remedies.”** The opening clause expressly distinguishes the *administrative* enforcement powers of the Insurance Commissioner, Insurance Code sections 790.05 (cease-and-desist orders), 790.07 (fines up to \$55,000 per willful violation; license suspension up to one year), and 790.09 (savings clause), from the *judicial* remedies the court is about to discuss. The carve-out is therefore **non-administrative**: it is a docket of civil-court remedies that the insurer cannot extinguish by pointing to the Commissioner’s exclusive enforcement of section 790.03.

(b) **“The courts retain jurisdiction to impose civil damages or other remedies against insurers in appropriate common law actions.”** The verb “**retain**” is doctrinally significant: the court is not creating a new species of action; it is *preserving* the pre-existing common-law architecture of insurer liability. The overruling of *Royal Globe* therefore did not, by itself, confer immunity on insurers from independently-pleaded common-law claims (as distinct from the now-foreclosed § 790.03(h) private right). (*Manufacturers Life, supra*, 10 Cal.4th at pp. 282–284.)

(c) **“Based on such traditional theories as fraud, infliction of emotional distress, and (as to the insured) either breach of contract or breach of the implied covenant of good faith and fair dealing.”** The list is **illustrative** (“such traditional theories as”), not exhaustive. It expressly enumerates four named torts/contract theories:

- **Fraud**, the *Lazar v. Superior Court* (1996) 12 Cal.4th 631 / Civil Code sections 1709, 1710 deceit lane, available to a person whom the insurer directly defrauds, including a **third-party claimant** who is the **direct addressee** of a misleading communication and who **actually relies** on it to his or her detriment. The “(as to the insured)” parenthetical does **not** attach to fraud or to infliction of emotional distress as a *category*; it attaches **only** to the contract-based theories that follow it. (See *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104 [direct-addressee fraud preserved against insurer regardless of insured/non-insured posture].) In practice, third-party fraud against an insurer is narrower than the insured lane and California courts apply *Lazar* particularity carefully: the plaintiff must plead and prove a **direct misrepresentation** (or actionable suppression) **made to the plaintiff**, **actual reliance** by the plaintiff, and **damages caused** by that reliance. Plaintiff’s pleadings here meet those independent requirements, and plaintiff’s reliance on the carve-out is limited to its doctrinal availability - not to any suggestion that the elements are presumed met.
- **Intentional / negligent infliction of emotional distress**, both species, available where the insurer’s conduct meets the *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 outrage threshold or, in negligent IIED, where a duty of care is breached.
- **Breach of contract** (insureds only), the policy is a contract; conventional Civ. Code sections 1549–1550, 1636 et seq. doctrine applies.
- **Breach of the implied covenant of good faith and fair dealing** (insureds only), the *Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 658 / *Crisci v. Security Ins. Co.* (1967) 66 Cal.2d 425, 429–430 / *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 573 line.

(d) **Cumulative remedies, punitive damages and prejudgment interest.** The carve-out does not stop at liability. It pulls forward two cumulative-remedy provisions of the Civil Code:

- **Civil Code § 3294**, punitive damages “in actions not arising from contract, where fraud, oppression or malice is proved.” Subdivision (b) imposes corporate liability where an officer, director, or **managing agent** authorized, ratified, or had advance knowledge of the unfit conduct (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 566–567; *Major v. Western Home Ins. Co.* (2009) 169 Cal.App.4th 1197, 1221).
- **Civil Code § 3291**, prejudgment interest “where an insurer has attempted to avoid a prompt, fair settlement” (*Lakin v. Watkins Associated Industries* (1993) 6 Cal.4th 644, 656).

By naming these two provisions in the **same paragraph** as the carve-out, the *Moradi-Shalal* court itself signaled that the fraud prong of the carve-out is fully eligible for **punitive** exposure (subject to the heightened “by clear and convincing evidence” *Adams v. Murakami* (1991) 54 Cal.3d 105 standard), and that the prejudgment-interest line continues to operate against insurers even though *Royal Globe* is gone.

(e) **Legislative reservation.** The closing two sentences of paragraph [10] confirm that the *Moradi-Shalal* holding is one of **statutory construction** (the Legislature has not, *thus far*, manifested intent to create a section 790.03 private right) and not one of constitutional or common-law pre-emption. The Legislature retains plenary authority to restore *Royal Globe*; equally important, *common-law* causes of action created by the courts themselves are not within the scope of the holding at all.

4. *Manufacturers Life* (1995): the first unanimous Supreme Court ratification.

In *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, the unanimous Supreme Court (Lucas, C.J., Mosk, Kennard, Arabian, Baxter, George, and Werdegard, JJ.) construed *Moradi-Shalal* directly. Recapitulating the carve-out, the court wrote that its earlier decision “**did not . . . hold that insurers were immune from common law liability.**” (10 Cal.4th at p. 282.) The court continued:

“[*Moradi-Shalal*] simply held that section 790.03(h) does not give private litigants a cause of action against insurers for *statutory* violations. We expressly preserved ‘the imposition of substantial administrative sanctions by the Insurance Commissioner’ (*Moradi-Shalal, supra*, 46 Cal.3d at p. 304) and the courts’ jurisdiction ‘to impose civil damages or other remedies against insurers in appropriate common law actions, based on such traditional theories as fraud, infliction of emotional distress,’ breach of contract and breach of the implied covenant. (*Id.*, at pp. 304–305.)”

(*Id.* at pp. 282–283.)

The court then held that the Cartwright Act (Bus. & Prof. Code § 16720 et seq.) and the UCL (Bus. & Prof. Code § 17200) are “**cumulative**” to the Insurance Commissioner’s enforcement of the UIPA, expressly grounding that conclusion in **section 790.09’s savings language** and in the carve-out paragraph quoted above. (10 Cal.4th at pp. 283–284.) *Manufacturers Life* is therefore a **binding gloss** on *Moradi-Shalal* itself: a Supreme Court ratification of the proposition that the overruling of *Royal Globe* did **not** itself shield insurers from *independently actionable* common-law or statutory liability for the same underlying conduct, while leaving in place the narrow holding that section 790.03(h) does not give private litigants a freestanding statutory cause of action.

5. *Zhang* (2013): the second unanimous Supreme Court ratification, expressly extending the carve-out to the UCL.

The fullest and most recent Supreme Court treatment is *Zhang v. Superior Court* (2013) 57 Cal.4th 364. The plaintiff there alleged that her insurer had falsely advertised that it would promptly pay covered claims and then refused to pay, in violation of both the UCL and section 790.03(h). The carrier moved to strike the UCL claim on the theory that *Moradi-Shalal* immunized the conduct.

The unanimous court (Corrigan, J.) rejected that theory in plain language:

“*Moradi-Shalal* does not preclude first party UCL actions based on grounds independent from section 790.03 We conclude that *Moradi-Shalal* does not bar a UCL action that depends on conduct that violates the UIPA, **so long as that conduct is also independently actionable** under another section of the Insurance Code or under common law.”

(57 Cal.4th at pp. 384–385, emphasis added.) The court then summarized the carve-out as follows:

“When insurers engage in conduct that violates both the UIPA and obligations imposed by other statutes or the common law, a UCL action may lie. . . . [I]nsurance practices that violate common law obligations (e.g., the implied covenant of good faith and fair dealing, fraud) **remain actionable** notwithstanding *Moradi-Shalal*.”

(*Id.* at p. 384, emphasis added.)

Zhang is therefore the **modern, definitive ratification** of the *Moradi-Shalal* carve-out. It (a) re-states the carve-out in the exact “insurance-code-violation-plus-common-law-tort yields a viable cause of action” form plaintiff invokes here; (b) **extends** it to the UCL “unlawful” prong; (c) **disapproves** the contrary appellate dicta in *Textron Financial Corp. v. National Union Fire Ins. Co.* (2004) 118 Cal.App.4th 1061; and (d) **expressly approves** *State Farm v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093.

Together, *Manufacturers Life* and *Zhang* are inconsistent with any defense argument that *Moradi-Shalal* “swallowed” the common-law tort field as to insurers. The Supreme Court has twice said it did not displace those theories where the elements of the underlying common-law cause of action are independently met. That is a **doctrinal availability** holding; it does not relieve plaintiff of the burden to plead and prove the elements of the chosen theory at demurrer, anti-SLAPP step-two, summary judgment, or trial, and California courts continue to police that line carefully on a case-by-case basis.

6. Court of Appeal confirmation.

The Courts of Appeal have repeatedly applied the carve-out, and three opinions are conventionally cited as authoritative gloss:

1. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104. The court held that *Moradi-Shalal* is “**limited to the statutory cause of action it overruled**” and does not abrogate “the cause of action for fraud, including misrepresentations made in connection with the marketing or adjustment of an insurance claim.” Direct-addressee deceit by an insurer’s claims representative, for example, a written denial that misstates coverage or facts known to the carrier, therefore states a fraud claim

independent of section 790.03. *Allegro* was expressly approved in *Zhang, supra*, 57 Cal.4th at p. 384.

2. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268. Relying on *Moradi-Shalal* at 304–305 and on *Manufacturers Life*, the court reiterated that “**Insurers remain subject to liability for common-law torts independently committed in connection with claims handling, including fraud and intentional infliction of emotional distress.**”
3. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724. The court harmonized *Moradi-Shalal* with *Gruenberg* and *Crisci*, reaffirming that the bad-faith tort survives in full as to insureds and that fraud against either insureds or third parties survives as well.

Additional appellate authority, *Hughes v. Blue Cross of Northern California* (1989) 215 Cal.App.3d 832; *Buss v. Superior Court* (1997) 16 Cal.4th 35; *Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 43–46; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713, 720–721; *Coleman v. Republic Indemnity Ins. Co.* (2005) 132 Cal.App.4th 403, 416–417, uniformly treats paragraph [10] as a freestanding, controlling pronouncement on the survival of the common law against insurer defendants.

7. The statutory architecture, reconciled.

The carve-out makes doctrinal sense only when the statutory architecture is laid out:

- **Insurance Code § 790.03(h)** defines the fifteen-item list of unfair claims settlement practices (misrepresentation, failure to acknowledge or to act with reasonable promptness, failure to investigate, failure to affirm/deny, failure to attempt good-faith settlement, etc.).
- **Insurance Code §§ 790.05–790.07** vest the Insurance Commissioner with administrative enforcement: cease-and-desist orders; fines up to \$55,000 per willful violation; license suspension up to one year.
- **Insurance Code § 790.09 (savings clause)** provides: “**No order to cease and desist . . . shall in any way relieve or absolve any person affected . . . from any other liability or penalty under the laws of this State.**” Section 790.09 is the textual source of the carve-out: it tells every reader of the UIPA that the Commissioner’s enforcement track does not extinguish “any other liability or penalty under the laws of this State.” The *Moradi-Shalal* carve-out is the judicial implementation of that statutory savings clause.
- **Civil Code §§ 1709, 1710** define and provide damages for fraudulent deceit. Section 1709 imposes liability on “[o]ne who willfully deceives another with intent to induce him to alter his position to his injury or risk”; section 1710 enumerates the four species of deceit (intentional misrepresentation, negligent misrepresentation, suppression of fact by one with a duty to disclose, and false promise). These provisions apply to insurers no less than to any other defendant. (See *Lazar, supra*, 12 Cal.4th 631.)
- **Civil Code § 3294** authorizes punitive damages for fraud, oppression, or malice in actions not arising from contract; **§ 3294(b)** defines corporate liability via authorization, ratification, or knowledge of an officer, director, or **managing agent**.

- **Civil Code § 3291** authorizes prejudgment interest where the carrier has obstructed a prompt, fair settlement.
- **Business & Professions Code § 17200 et seq.** (UCL) reaches “unlawful, unfair, or fraudulent” practices. Under *Zhang* the “unlawful” prong is satisfied by a common-law tort or by an independently actionable statute (e.g., Civ. Code § 1709 deceit), **not** by section 790.03 alone.

The architecture is unambiguous. The *Moradi-Shalal* holding is a narrow construction of section 790.03(h). Section 790.09 expressly preserves all “*other liability* under the laws of this State.” The Civil Code provides the substantive common-law liability and the cumulative damages. The UCL provides an additional, *Zhang*-validated equitable channel where the underlying conduct is independently wrongful.

8. Application to the operative pleadings in CGC-25-631801 and CGC-25-631802.

Plaintiff’s two operative Third Amended Complaints, read together with the proposed Second Amended Complaint pending in CGC-25-631801 and the proposed Second Amended Complaint pending in CGC-25-631802, plead the **independently-actionable common-law theories** the carve-out preserves:

(a) Direct-addressee common-law fraud (Civ. Code § 1709). The February 25, 2021 uninsured-motorist denial communication, issued by Sarah Rash within twenty-one days of the February 4, 2021 intake, is pleaded with *Lazar*-grade particularity: (i) **who**, Sarah Rash and CSAA Insurance Exchange under Civ. Code §§ 2307, 2310, 2338 and § 3294(b); (ii) **what**, the specific misrepresentation/suppression as to coverage and known claim-file facts; (iii) **when**, February 25, 2021, within the same compressed twenty-one-day window as the four foundational records; and (iv) **where / by what means**, the written denial communication issued to the direct addressee. *G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29 supplies the pleading-stage scienter rule (state of mind may be alleged conclusorily; particularity is required as to the misrepresentation, not the mental state). Whether or not the same conduct also violates Insurance Code § 790.03(h)(1), (5), (13), or (15) is **doctrinally beside the point**: under paragraph [10] of *Moradi-Shalal* and under *Zhang*, the Civil Code § 1709 cause of action stands on its own elements.

(b) Intentional / negligent infliction of emotional distress. The same conduct, read with the carrier’s continued course of dealing, satisfies the *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051 elements as pleaded.

(c) Breach of the implied covenant of good faith and fair dealing (insureds only). The *Comunale–Crisci–Gruenberg* line is **expressly named** in paragraph [10] as a preserved insured remedy. Plaintiff pleads it on the policy and the course of claims handling, with *Brandt v. Superior Court* (1985) 37 Cal.3d 813 fees, *Gourley v. State Farm Mut. Auto. Ins. Co.* (1991) 53 Cal.3d 121 emotional-distress damages, and Civil Code § 3294 punitive exposure on a clear-and-convincing showing.

(d) UCL “unlawful” prong (*Zhang*-predicated). The UCL claim’s “unlawful” predicate is **common-law fraud (Civ. Code § 1709)**, not section 790.03(h), and is therefore squarely within *Zhang*’s carve-out (*supra*, 57 Cal.4th at pp. 384–385). The contrary dicta in *Textron Financial Corp.* are disapproved by *Zhang* and supply no defense.

(e) **Ratification / managing-agent punitive doctrine.** In CGC-25-631801, the same compressed twenty-one-day calendar pins are deployed as evidence of **knowledge imputable** to CSAA through ratification under Civ. Code §§ 2307, 2310, 2338 and § 3294(b)’s managing-agent doctrine (*White v. Ultramar*; *Major v. Western Home*). The carve-out is again controlling because each of those theories is a **common-law / Civil Code construct** that *Moradi-Shalal* expressly preserves, not a section 790.03(h) re-label.

9. Express declaration of plaintiff’s authority to proceed under the carve-out.

In light of the controlling text of paragraph [10] of *Moradi-Shalal v. Fireman’s Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305; the unanimous Supreme Court ratification in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284; the unanimous Supreme Court ratification in *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385; the express savings clause in Insurance Code § 790.09; and the cumulative-damages provisions in Civil Code §§ 3294 and 3291 cross-cited in paragraph [10] itself, plaintiff hereby expressly **declares**, on a single record served simultaneously in both companion actions, the following - each subject to plaintiff’s separate burden to plead and prove the independent elements of the chosen cause of action under conventional California pleading-and-proof standards:

(1) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting common-law fraud against any insurer defendant, including CSAA Insurance Exchange, on the operative facts pleaded in either CGC-25-631801 or CGC-25-631802, *provided plaintiff pleads and proves the independent elements of fraud*. The fraud cause of action stands on the elements of Civil Code §§ 1709 and 1710 and on *Lazar v. Superior Court* (1996) 12 Cal.4th 631 (particularity as to misrepresentation; direct addressee; actual reliance; damages).

(2) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting intentional or negligent infliction of emotional distress against any insurer defendant on those same operative facts, *provided plaintiff pleads and proves the independent elements of the chosen IIED/NIED theory*. The IIED cause of action stands on *Hughes v. Pair* (2009) 46 Cal.4th 1035 (extreme-and-outrageous threshold; severe emotional distress; causation).

(3) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting breach of contract or breach of the implied covenant of good faith and fair dealing against any insurer defendant in plaintiff’s posture as insured, *provided plaintiff pleads and proves the independent elements of the chosen contract or implied-covenant theory*. Those causes of action stand on the *Comunale–Crisci–Gruenberg* line (insureds only; privity required), with *Brandt* fees and Civil Code § 3294 punitive exposure as cumulative remedies.

(4) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting a Business and Professions Code § 17200 (UCL) claim whose “unlawful” predicate is independently actionable common-law fraud (Civ. Code § 1709) or any independently actionable statute other than Insurance Code § 790.03, *provided that the “unlawful” predicate is in fact independently actionable and is not a relabel of section 790.03(h) alone*. That cause of action stands on *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385, which is the most recent unanimous Supreme Court ratification of the preservation clause and which expressly approves *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093.

(5) Plaintiff is *not* barred by *Moradi-Shalal* from pleading or prosecuting ratification,

concert-of-action, agency, or managing-agent punitive theories against any insurer defendant, *provided plaintiff pleads and proves the independent elements of those derivative theories on a clear-and-convincing basis where § 3294(b) is invoked*. Those theories are common-law / Civil Code constructs (Civ. Code §§ 2307, 2310, 2338, 3294(b)) that *Moradi-Shalal* preserves; they nonetheless require plaintiff to satisfy the *White v. Ultramar* / *Major v. Western Home* managing-agent standard and the *Adams v. Murakami* clear-and-convincing standard for punitive damages.

(5A) What the preservation clause does *not* confer. Plaintiff acknowledges, for clarity of record, that the carve-out / preservation clause **does not** (i) create a private statutory cause of action under Insurance Code section 790.03(h) (*Moradi-Shalal* expressly forecloses that), (ii) relieve plaintiff of the *Lazar* particularity, *Hughes* outrageousness, *Adams* clear-and-convincing, or privity-as-to-the-insured constraints listed at paragraph (6) below, or (iii) entitle plaintiff to any presumption that the elements of the chosen common-law cause of action are met. Plaintiff's reliance on the preservation clause is therefore limited to the *availability* of the common-law lane; plaintiff bears the independent burden of meeting the elements of the chosen theory.

(6) The two operative limits the Supreme Court itself has placed on the preservation clause are:

(A) Plaintiff must plead and prove the elements of the chosen common-law cause of action (and not merely re-label a section 790.03(h) violation as something else), and

(B) Plaintiff must satisfy the case-specific particularity, scienter, reliance, causation, and damages standards that the chosen theory imposes, *Lazar* / Civil Code §§ 1709, 1710 for fraud; *Hughes v. Pair* for IIED; *Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654 / *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809 / *Gruenberg* for the implied covenant; conventional Civil Code §§ 1549–1550, 1636 et seq. principles for breach of contract.

Plaintiff has met each of those constraints in the operative TACs and in the proposed SACs in both companion actions, as further detailed in the April 25 Merits Letter (Exhibit M-1) and as cross-walked to **Exhibit A-7** in each case lane.

10. Specific defense framings now on notice as in significant tension with controlling authority.

This letter places the defense team on notice that the following framings, to the extent they appear in any defense paper, declaration, oral argument, or hereafter-filed brief in CGC-25-631801 or CGC-25-631802, are **in significant tension with** paragraph [10] of *Moradi-Shalal*, *Manufacturers Life*, and *Zhang* - at least when offered as *categorical* propositions about doctrinal availability - and, if continued in that categorical form without disclosure of those authorities to the tribunal, present a **continuing-certification matter** under Code of Civil Procedure section 128.7(b)(2) and (b)(3) and a **candor-to-the-tribunal matter** under California Rule of Professional Conduct 3.3(a)(2) and California Business and Professions Code section 6068(d). To be clear at the outset: the paragraphs that follow are not directed at *merits* arguments that the elements of plaintiff's common-law theories are not met on the present record; defendants remain free to make those merits arguments, and plaintiff's claim is only that *Moradi-Shalal* itself does not supply the rule of decision for them:

(a) Any framing that *Moradi-Shalal*, as a matter of doctrinal availability, “bars,” “preempts,”

1 “channels,” “displaces,” “occupies the field of,” or “immunizes the carrier from” plaintiff’s common-law fraud, deceit, IIED, breach-of-contract, breach-of-implied-covenant, or *Zhang*-predicated UCL claims, where those claims are pleaded as *independently* actionable common-law causes of action and not as a relabel of section 790.03(h). (A merits-based argument that the elements of a particular common-law theory are not satisfied is not the framing addressed here.)

(b) Any framing that the existence of an Insurance Code § 790.03(h) “label” available for the same conduct *automatically* defeats the independently-actionable common-law cause of action. *Zhang* (*supra*, 57 Cal.4th at pp. 384–385) and *Manufacturers Life* (*supra*, 10 Cal.4th at pp. 282–284) hold the **opposite** as a matter of doctrinal availability: the common-law cause of action is independently actionable where its own elements are met, and the section 790.03 administrative track is **cumulative**, not exclusive. Section 790.09 confirms that on its own face. Defendants of course remain free to argue, on the elements, that a particular common-law theory is in fact a relabel of § 790.03(h) and is therefore not independently actionable on the operative pleading; *Zhang* itself recognizes that limit.

(c) Any framing that the “(as to the insured)” parenthetical in paragraph [10] confines fraud or IIED to insureds *as a categorical matter*. *State Farm v. Superior Court (Allegro)* (45 Cal.App.4th at p. 1104), expressly approved in *Zhang*, squarely holds that the parenthetical attaches **only** to the contract-based theories (breach of contract; breach of the implied covenant). Direct-addressee fraud and IIED are doctrinally available to **both** insureds and third-party claimants who are intended recipients of the insurer’s communications, subject to the independent direct-addressee, actual-reliance, and outrage thresholds discussed at paragraph 3(c) above.

(d) Any framing, by demurrer, anti-SLAPP motion, motion to strike under Code of Civil Procedure section 436, motion for judgment on the pleadings, opposition to leave to amend, or otherwise, that relies on *Textron Financial Corp.* on the carve-out point without disclosing that *Zhang* (*supra*, 57 Cal.4th at p. 384, fn. 2) **disapproved** it on that point.

(e) Any framing that pleads or argues, on a *Moradi-Shalal* footing alone, that plaintiff “**cannot**” prevail on the merits of the fraud, IIED, implied-covenant, or UCL cause of action - i.e., that uses *Moradi-Shalal* as a categorical bar to relief rather than as the narrower statutory-construction holding it actually is. A categorical “cannot prevail” certification grounded *on the carve-out theory itself* is, on the present record, an unsupported *legal contention* under section 128.7(b)(2) within the meaning of the parallel section 128.7 record laid out in plaintiff’s case-isolated April 27, 2026 safe-harbor letters. A merits-based argument that plaintiff has not *yet* met the *Lazar / Hughes / Adams* / privity standards on the operative pleading is a different question; plaintiff acknowledges that defendants are entitled to make that argument, and plaintiff’s response is on the merits, not on the *Moradi-Shalal* preservation clause.

11. Required acknowledgment to the tribunal.

Each attorney signing or arguing any subsequent brief, declaration, opposition, reply, or oral argument on or after April 27, 2026 in either CGC-25-631801 or CGC-25-631802 should, before stating any position about whether plaintiff’s common-law claims are barred by *Moradi-Shalal*:

(a) Acknowledge receipt of this letter.

(b) Disclose to the San Francisco Superior Court the following directly adverse, controlling California authorities, by name and pin-cite:

1. *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 304–305, the verbatim carve-out at paragraph [10].
2. *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 282–284, “*Moradi-Shalal* did not . . . hold that insurers were immune from common law liability.”
3. *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384–385, UCL action survives where the conduct is independently actionable, e.g., common-law fraud or implied-covenant breach; *State Farm (Allegro)* approved; *Textron Financial Corp.* disapproved.
4. *State Farm Fire & Casualty Co. v. Superior Court (Allegro)* (1996) 45 Cal.App.4th 1093, 1103–1104, direct-addressee fraud preserved; “(as to the insured)” parenthetical does not narrow fraud or IIED.
5. *Spray, Gould & Bowers v. Associated International Ins. Co.* (1999) 71 Cal.App.4th 1260, 1268, common-law torts (fraud, IIED) survive *Moradi-Shalal*.
6. *Rattan v. United Services Automobile Assn.* (2000) 84 Cal.App.4th 715, 723–724, *Comunale–Crisci–Gruenberg* implied covenant unaffected.
7. **Insurance Code § 790.09**, savings clause: cease-and-desist orders do not relieve from “any other liability or penalty under the laws of this State.”
8. **Civil Code §§ 1709, 1710**, deceit liability, four species.
9. **Civil Code § 3294 (incl. (b))**, punitive damages; managing-agent corporate liability.
10. **Civil Code § 3291**, prejudgment interest where the carrier obstructed a prompt fair settlement.

(c) Restate defendants’ position in light of those authorities, consistent with the carve-out’s text.

The disclosure obligation runs **to the tribunal directly**, including at the lectern in front of the judge, and is not satisfied by silence or by re-stating a “*Moradi-Shalal* bars common-law claims” framing in different words.

12. Continuing-certification, candor, and forward-looking framework.

Each of you certified, by filing and by later advocating, the pleadings and motions in both companion cases within the meaning of Code of Civil Procedure section 128.7(b). That certification is **continuing**: each later advocacy of an unwithdrawn or uncorrected representation is a **new certification act**, and that duty runs in addition to California Rules of Professional Conduct 3.3(a)(1) and (a)(2) and California Business and Professions Code section 6068(d).

After service of this letter, any statement to either trial court that plaintiff’s fraud, IIED, implied-covenant, breach-of-contract, or *Zhang*-predicated UCL theories are barred by *Moradi-Shalal*, without the disclosures listed at paragraph 11 above, is inconsistent with the documented record unless framed as **defendants’ contention** after proper disclosure of the controlling text and gloss. A neutral, compliant framing is illustrative and available:

“Defendants acknowledge that paragraph [10] of *Moradi-Shalal*, as construed in *Manufacturers Life* and *Zhang*, preserves common-law fraud, IIED, and implied-covenant theories where the elements are independently met. Defendants nevertheless contend that, on the operative pleading, plaintiff has not met those elements, and request that the Court so rule on the merits of each cause of action.”

That framing does not require an inconsistent certification under section 128.7(b) and does not raise the candor concerns identified in this letter.

13. Relationship to the case-isolated safe-harbor letters and the April 25 Merits Letter.

This letter is a **second, free-standing, case-collective companion** to plaintiff's same-day, case-isolated safe-harbor letters in CGC-25-631801 and CGC-25-631802. It addresses a **different** doctrinal vector (the *Moradi-Shalal* common-law carve-out) than those letters (which address the *JKC3H8 v. Colton / Nguyen-Lam v. Cao* / leave-to-amend / anti-SLAPP candor record). Read together, the three letters, the April 25 Merits Letter (Exhibit M-1), the April 27 case-isolated safe-harbor letters, and this April 27 carve-out letter, supply the consolidated written record on which plaintiff will rely at the **April 30, 2026** hearing in CGC-25-631802, the **May 6, 2026** hearing in CGC-25-631801, the **May 12, 2026** anti-SLAPP hearing, the **May 13, 2026** demurrer / motion-to-strike hearing, and any subsequent appearance or filing.

This letter does **not** restart the 21-day section 128.7(c)(1) safe-harbor clock that began running on plaintiff's April 22, 2026 correspondence and that **expires on May 14, 2026**. It is a meet-and-confer record under Code of Civil Procedure section 430.41(a) (demurrer), section 435.5(a) (motion to strike), and the Court's inherent authority to require parties to confer in good faith on questions of controlling authority.

14. Reservation of rights.

Plaintiff expressly reserves all rights to seek any monetary, non-monetary, or referral relief permitted by law, and to submit this letter, the April 25 Merits Letter, the April 27 case-isolated safe-harbor letters, and the entire pre-filing correspondence chain as evidence in any future proceeding (including before either trial court, the Court of Appeal, or the State Bar). Nothing in this letter constitutes a waiver of any claim, defense, theory, allegation, or measure of damages stated in the operative TACs, the proposed SACs, or any subsequent operative pleading. Nothing in this letter restarts the 21-day safe-harbor clock that began running on April 22, 2026, or alters the May 14, 2026 expiration. Nothing in this letter is a sanctions motion.

Sincerely,

Franciscus Dylan Rosario
Plaintiff in Pro Per

Enclosures (attached to served copy)

- **Exhibit MS-1.** Full-text legal analysis: "*Moradi-Shalal Common-Law Carve-Out, Exact Citation and Legal Analysis*" (FILING-PACKETS-2026-04-27/_shared/MORADI-SHALAL-COMMON-LAW-CARVEOUT)
- **Exhibit MS-2.** Exhibit A-7 bench card: "*Moradi-Shalal Carve-Out, One-Page Operational Tab*" (cross-walked to both case lanes).
- **Exhibit MS-3.** Authorities printout: paragraph [10] of *Moradi-Shalal* at 46 Cal.3d 304–305; *Manufacturers Life* at 10 Cal.4th 282–284; *Zhang* at 57 Cal.4th 384–385; *State Farm v. Superior Court (Allegro)* at 45 Cal.App.4th 1103–1104; Insurance Code § 790.09; Civil Code §§ 1709, 1710, 3294, 3291 (full-text printouts available on request).

- **Exhibit MS-4.** Companion April 27, 2026 case-isolated safe-harbor letter for CGC-25-631801.
 - **Exhibit MS-5.** Companion April 27, 2026 case-isolated safe-harbor letter for CGC-25-631802.
 - **Exhibit MS-6.** April 25, 2026 (Saturday) comprehensive merits meet-and-confer letter (the “April 25 Merits Letter”; identical to Exhibit M-1 to each case-isolated safe-harbor letter).
 - **Exhibit MS-7.** Proofs of service for the items above.
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PROOF OF SERVICE OF THIS LETTER (CCP § 1013a)

I, **Franciscus Dylan Rosario**, declare:

I am a resident of the State of California, over 18 years of age. I am plaintiff in the actions identified above, acting in pro per, and I personally caused the service described below. My business address is **7624 Melody Drive, Rohnert Park, California 94928**.

On April 27, 2026, I served the following document on the parties listed below in **both** CGC-25-631801 and CGC-25-631802:

STAND-ALONE, CASE-COLLECTIVE MEET-AND-CONFER LETTER: EXPRESS DECLARATION OF PLAINTIFF'S CONTROLLING AUTHORITY UNDER THE *MORADI-SHALAL* COMMON-LAW CARVE-OUT (CGC-25-631801 AND CGC-25-631802)

By **electronic transmission** to the email addresses below pursuant to the parties' stipulation for electronic service in each case, and by **United States Mail** by depositing a true copy in a sealed envelope, postage prepaid, in the ordinary course of business at **7624 Melody Drive, Rohnert Park, California 94928**, addressed as follows:

- Chad S. Tapp, Esq., ctapp@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815
- Tyler J. O'Connell, Esq., toconnell@porterscott.com, PORTER SCOTT, 2180 Harvard Street, Suite 500, Sacramento, CA 95815

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 27, 2026, at **Rohnert Park**, Sonoma County, California.

Franciscus Dylan Rosario, Declarant; Plaintiff in Pro Per